

PROJECT FEASIBILITY REPORT

Proposed Residential cum Commercial

JAI JAWAN CO-OPERATIVE HOUSING SOCIETY

Plot No.01, Sector-17, Vashi, Navi Mumbai, Maharashtra 400703



PATEL
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PROJECT MANAGEMENT CONSULTANTS

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1. Introduction

a) Client:

Jai Jawan Co-Operative Housing Society on Plot No.01, Sector-17, Vashi, Navi Mumbai, Maharashtra 400703

b) Through:

Managing Committee.

c) Scope of work:

Feasibility Report for Redevelopment of the Building.

d) Consultants:

M/S Patel Architects and Associates. (PMC)

Office No.-102, Skylark, Plot No.63, Shahbaz Village, Sector 11, CBD Belapur, Navi Mumbai, Maharashtra 400614

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e) References:

Special General meeting for redevelopment: Dated. 9th March, 2025

Paper Notice for Invitation for Project management Consultant: Dated. 13th March, 2025

Request for Presentation: Dated. 13th July, 2025

Appointment Letter: Dated. 26th October, 2025.

Service Agreement: Dated. 12th November, 2025.

Special General meeting for Feasibility: Dated. 8th February, 2026 (Acceptance/ Undertaking)

f) Back ground:

M/S Patel Architects and Associates submitted a proposal to the managing committee of Jai Jawan Co-Operative Housing Society. Mr. Sagar Patel discussed the methodology of FSI working & valuation with society owners. The work was awarded vide appointment letter from the society dated 26th October, 2025 and started the work on 27th October, 2025.

g) General:

Due to the environmental attacks, inferior quality material used, poor workmanship, extra loading and aging factor, many buildings are showing distress symptoms, many building deteriorates beyond repairing means. No doubt those buildings shall be repaired in systematic and schematic way. However, all the roads in this respect ends to availability of funds. Many a times fundraising is sensitive / problematic issue though you wish to repair your building. Navi Mumbai Municipal Corporation under 7.6.1 & 7.13 to utilize plot FSI & additional F. S. I., where you can purchase FSI, consume the same in your own property and enhance the proceedings. These monetary benefits can be very well used to compensate

for increased maintenance charges. However, there are many grey areas and complications. On request from society, we as Project management consultants (Architects + Structural / Civil Engineer + Legal advisor) have studied your plot and applicable government authority rules for redevelopment. Accordingly, this report has been prepared with basic information to provide a guideline / concept on redevelopment to each and all.

h) Field work:

Our team have inspected the Plot measurements, Carpet area measurement dated on 12th to 15th December, 2025

i) Analysis & guidelines:

The Architects have carried out the Preliminary document's scrutiny, title & plot size identifications and compilation of all the data for the FSI calculation.

A statement as regards to the observation is presented in this document.

j) Declaration

This document is in draft format to owner / society for modification after discussion on remarks & suggestions. Draft for Society members ONLY. Society Committee members are requested / suggested to go through and provide your written remarks / suggestion. There after issue this document to all members. Copy (soft / hard copy) shall be read by committee members, ask PMC for corrections (if any), accordingly distribute to each & all members for information. Society members are requested / suggested to study 2 / 3 times and provide your written remarks / suggestion. Revised draft will be sent once again by mail. Same shall be discussed & approved at SGBM. We shall do / incorporate the approved suggestions (if any) and provide the final signed hard copy after approval of SGBM.

2. Site Study

As per the instructions received from the Committee Members of Jai Jawan Co-operative Housing Society Ltd., we have examined the redevelopment proposal pertaining to Plot No 01 in Sector 17, Vashi, Navi Mumbai – 400703. The subject site measures approximately 1850 sq. m. and is delineated in accordance with the CIDCO approved layout plan.

A detailed site inspection was undertaken to evaluate the redevelopment potential of the property. As per the sanctioned Development Plan of Navi Mumbai, the land is designated for Residential Use and is abutted on the western side by 19.00M -wide Service Road and in addition to 38.00M-wide Development Plan (D.P.) Road. The site is surrounded by residential development on the eastern sides while the northern and southern side is surrounded by commercial development.

Observations during the preliminary site visit indicate that the surrounding area is predominantly commercial in character, with a noticeable presence of residential and public/semi-public land uses in close proximity. The subject plot benefits from excellent connectivity and seamless integration within the urban fabric, rendering it highly suitable for residential redevelopment.

As per the Modified Development Plan, sanctioned under Section 28 of the Maharashtra Regional and Town Planning Act, 1966, the existing land reservations in the vicinity remain unchanged.

The plot is adequately served by municipal infrastructure, with established connections to the municipal sewerage system and water supply network through the adjoining 19.00 M-wide Service Road.

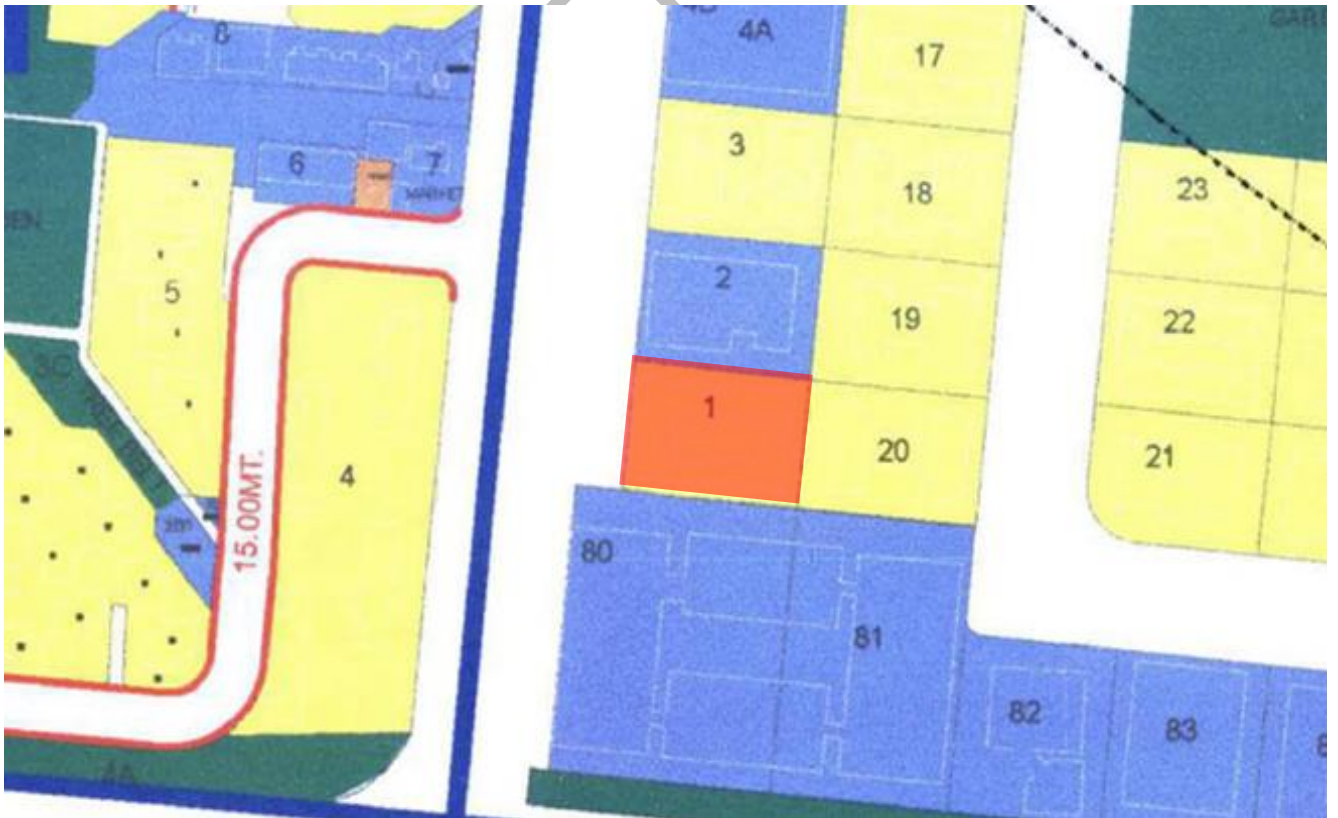
The proposed redevelopment scheme shall strictly comply with the provisions of the Unified Development Control and Promotion Regulations (UDCPR), 2020, particularly those governing the redevelopment and reconstruction of dilapidated buildings within the NMMC jurisdiction. These provisions are applicable to buildings originally constructed by CIDCO that have deteriorated due to age, natural calamities, accidental fires, or have been demolished pursuant to lawful orders issued by the Municipal Commissioner.

Plot Area		1850 Sq.Mtr	
Existing Carpet Area	Residential	2573.16	3187.97 Sq.Mtr
	Commercial - Front	135.55	
	Commercial- Side and Back	479.26	
Existing No of Units	Residential	70	115
	Commercial - Front	10	
	Commercial- Side and Back	35	
Existing No Of Floors		G+4	
Land Ready Reckoner		75800	
Residential Ready Reckoner		153700	
Shop Ready Reckoner		239500	
Office Ready Reckoner		153700	
Reserve Rate		24740	

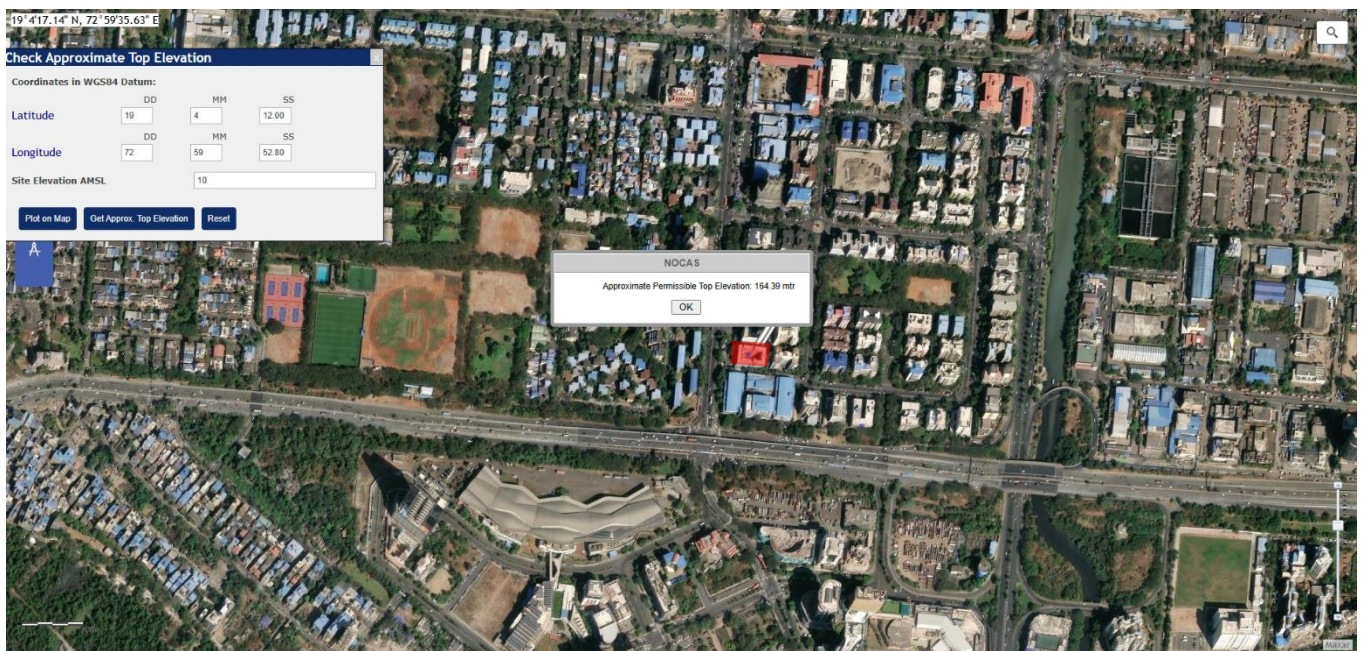
Google Plan:



Development Plan:



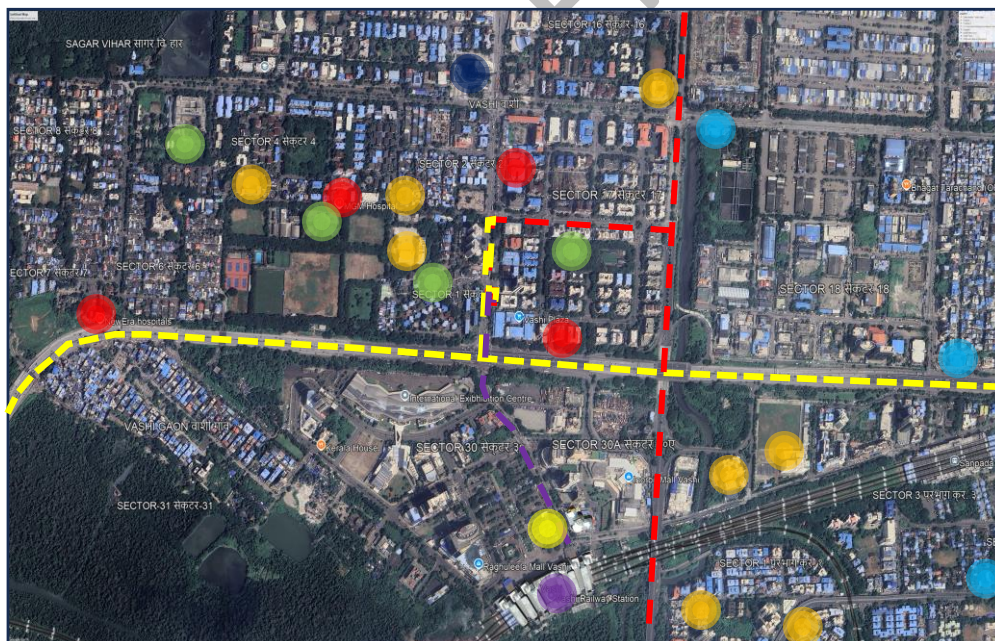
Permissible Building height as per AAI:



As per NOCAS max height available = 164.39 mtr

Site elevation (approx.) = 10.00 mtr

Maximum permissible height (top of the building) = 154.39 mtr



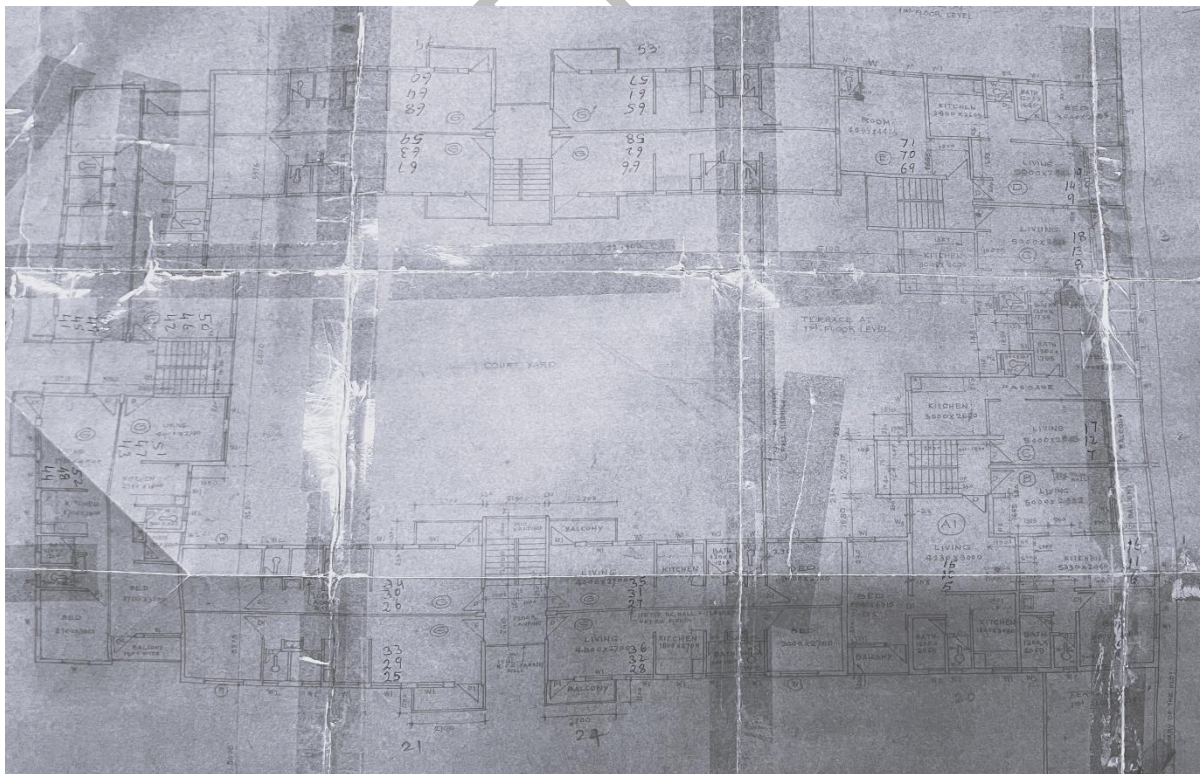
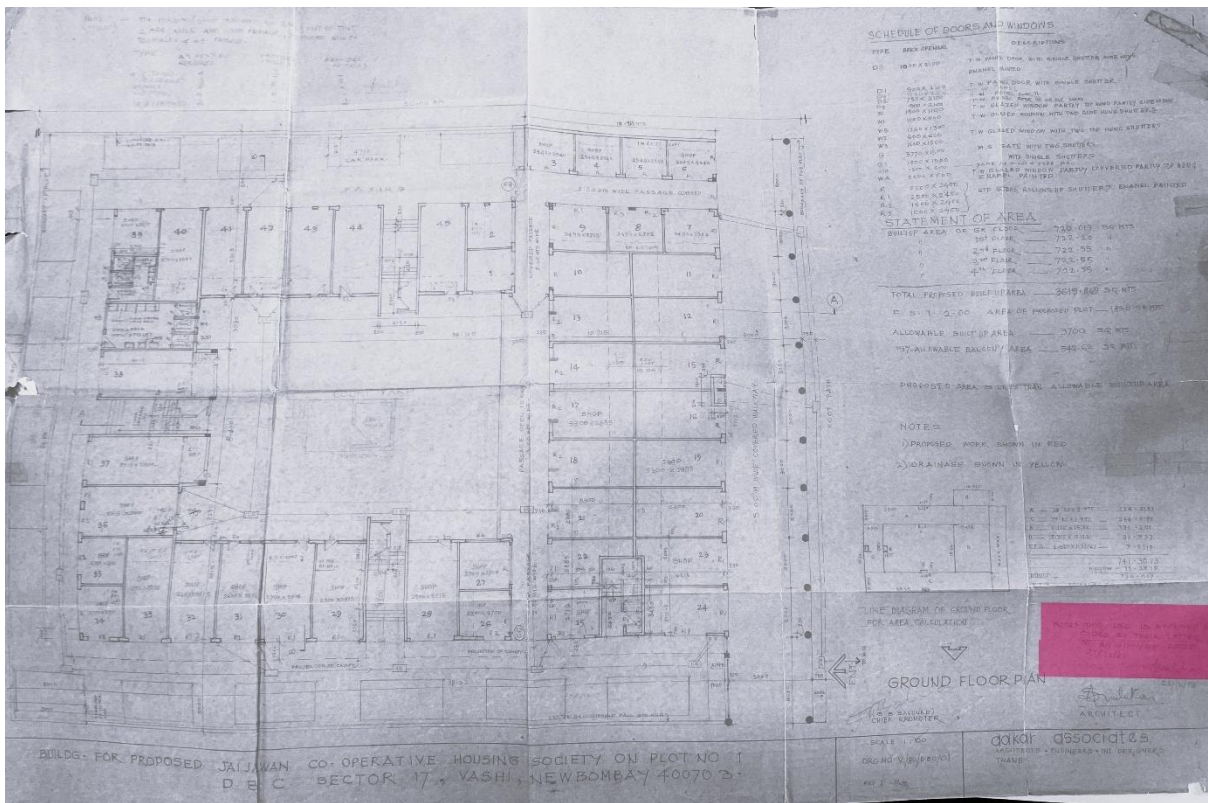
- | | | | | | |
|--|------------------------|--|------------------------|--|-------------------------|
| | Vashi Flyover | | Palm Beach Road | | Station Road |
| | Railway Station | | Rikshaw Stand | | School / College |
| | Garden | | Hospital | | Fuel Station |

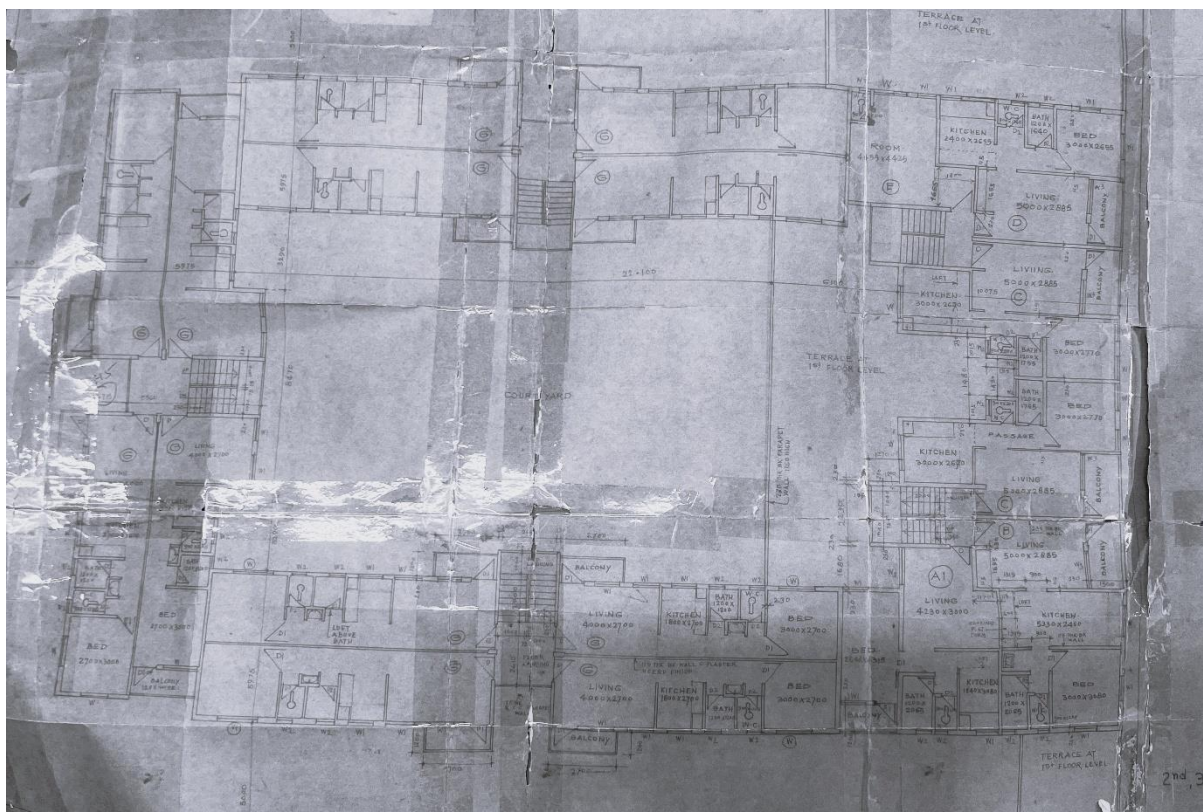
3. Site Photograph





4. Existing Layout Plan Approved By CIDCO/NMMC





- Commencement Certificate bearing Letter No. **BP/V/17/1/588**, dated **23/09/1981**.
- Amended Commencement Certificate bearing Letter No. **BP/V/17/1/109**, dated **21/12/1983**. Above mentioned drawings are from Approved Layout.
- Part Occupancy Certificate bearing Letter No. **BP/V/17/1/588**, dated **06/05/1986**, issued for the **Ground Floor**.
- Full Occupancy Certificate bearing Letter No. **BP/V/17/1/200**, dated **16/12/1986**, issued for the **First to Fourth Floors**.

5. Highlights Of Redevelopment

1. Infrastructure:

Complete transformation of existing old structures into new, earthquake-resistant buildings with modern design and facilities.

2. Flat Size:

Spacious flats with improved layouts, cross-ventilation, and high-quality construction materials.

3. Amenities:

Provision for clubhouse, gymnasium, landscaped garden, children's play area, senior citizen zone, and multi-purpose hall.

4. Safety and Security:

CCTV surveillance, fire-fighting systems, access-controlled entry points, and 24x7 security services.

5. Sustainable Development:

Inclusion of rainwater harvesting, solar power systems, sewage treatment plant (STP), and waste segregation.

6. Utilities:

Upgraded roads, drainage, lighting, water supply, and electric connections with modern systems.

7. Additional Benefits for Existing Tenants:

- Rent or transit accommodation during construction.
- Corpus fund and area benefit as per redevelopment norms.
- Timely possession assurance with legal agreements.

8. Aesthetics:

Beautifully designed façades, landscaped open spaces, and organized parking for residents and visitors.

9. Compliance & Transparency:

Project undertaken as per unified development control and promotion regulations (UDCPR) with approval from authority.

10. Community Planning:

Focus on creating a safe, green, and vibrant community with shared amenities and open spaces

6. Required Documents for redevelopment

1. Property related documents:

- True Copy of Lease Deed from CIDCO.
- True Copy of Registration of Co Op Housing Society from Joint-Registrar.
- Authority Letter given to Office Bearers of Society in Original.
- True Copy of Development Agreement and Power of Attorney (if applicable).
- Irrevocable Consent on Rs100/- stamp paper for Redevelopment and appointment of developer from members of Society in original.
- List of members with tenement details duly certified from CIDCO Ltd.
- Resolutions passed in the SGM of society regarding redevelopment.

2. Area related Documents -

- True Copy of Demarcation plan from CIDCO Ltd.
- True Copy of Tenement Plan giving details of Carpet Area and Built-Up area.
- Layout of Plot showing Rehabilitation buildings, Open spaces, Amenity spaces, internal Roads approved and signed by Authorised Signatories of society in original.
- Individual tenement plans giving details of Carpet area and Built-up Area signed by Authorised Signatories of the Society in original.

3. Appointment Letters and related Documents-

- Appointment of Architect along with Acceptance Letter, Form of Supervision, Declaration, Copy of License from Architect.
- Appointment of Structural Engineer along with Acceptance Letter, Form of Supervision, Declaration, Copy of License from Structural Engineer.
- Acceptance Letter, Form of Supervision, Copy of License from Licensed Plumber.
- D.P. Remarks from NMMC giving details of Road Widening, Amenity Area and Recreational Open spaces.
- Actual Site survey of plot done by the licensed Surveyor.

4. Undertakings in prescribed formats -

- Undertaking for Open to Sky Terrace and Stilt.
- Undertaking for CESS / LBT NOC.
- Undertaking for Non-stacking of Debris.
- Undertaking for Earthquake Resistant Structural Design.
- Undertaking for surrender of area under Road widening, Amenity space and tenements to be handed over to CIDCO and NMMC, if any.
- Undertaking for payment of Infrastructure Charges.
- Undertaking for Corpus Fund.
- Undertaking for timely possession of Rehabilitation tenements.
- Indemnity Bond in favour of NMMC for litigations and court cases.

5. **No Objection Certificates -**

- NOC from Assessment Dept., NMMC for Property tax & water department for water bill.
- NOC from Fire Officer, NMMC.
- NOC from CIDCO & Joint Registrar of Society,
- NOC from AAI/Competent Authority for allowable height.
- NOC from MOEF, for Environmental Clearance. (if required)
- NOC from City Engineering Section for Road Widening. (if any)
- NOC from society for Transit Accommodation or Alternative provision.

DRAFT REPORT

7. Clause applicable as per UDCPR (Updated up to 30th January 2025)

Chapter 10. City Specific Regulation

10.10 NAVI MUMBAI MUNICIPAL CORPORATION

*10.10.1 Basic FSI Permissible for Certain Categories of Plots.

Business or Mercantile use wholly or in combination with the residential use in any other zone mentioned in Regulation, other than Regional Park Zone and No Development Zone, shall be as below.

Provided that, in case of combination, Business or mercantile use shall not be less than 10% of the admissible FSI. Provided further that the area of all such plots taken together in the zone from Node shall not exceed 15% of the area of the relevant zone from the Node.

- | | |
|--|------------------|
| a. For plots of area below 1000 sq.m. | Basic FSI = 1.00 |
| b. For plots of area 1000 sq.m. and above
& fronting on minimum 15.0 m. wide road | Basic FSI = 1.50 |

Note :

- 1) The benefit of the regulation mentioned at (a) above may be extended to plots of land leased out or agreed to be leased out by CIDCO earlier with different (lower) FSI, in Zones other than predominantly Commercial Zone, provided further that all other UDCPR provisions including parking are fully complied with.
- 2) All plots leased by CIDCO with FSI 1.50 and fronting on roads less than 15.0 m. if any, prior to the sanction of this UDCPR shall be exempted from the 15.0 m. road with criteria.

If the intended development is within the scheme for allotment of land to the project affected land holders in the defined area contiguous to the villages or within the scheme of allotment of 12.5% / 22.5% land to the project affected land holders, 15% of such FSI may be utilized for commercial area and FSI permissible shall be 1.50. ^(iv) In such case, the clear marginal open spaces within the plot required to be provided for the purposes of deriving light and ventilation, shall be as follows :-

Category	Area of plot fronting road (in m.)	Max permissible height of buildings	Min. Marginal Open Spaces (in m.)			
			Front	Side	Side - 2	Rear
Row houses with or without common walls	a 40 m ² to less than 150 m ²	13 m	1.5	0.0	0.0	2.25
	b 150 m ² to less than 150 m ²	13 m	3.0	0.0	0.0	3.0
Semi-detached building	a 150 m ² to less than 150 m ²	13 m	1.5	2.25	0.0	2.25
	b 150 m ² to less than 300 m ²	13 m	3.0	1.5	0.0	3.0
	c More than 300 m ² to less than 450 m ²	13 m	3.0	3.0	0.0	3.0
Detached building	a 450 m ² to less than 1000 m ²	13 m	3.0	3.0	3.0	3.0
	b 1000 m ² and above	As per regulation No. 6.2 and 6.3 of these regulation.				

- ^(iv) 3) In case of plot where basic FSI is 1.5 the maximum building potential of plot including in-situ FSI as mentioned in table 6-G may be allowed to be exceeded by further 0.5.

Chapter 7. Higher FSI for certain uses

Clause 7.6 Redevelopment of Old Dilapidated / Dangerous Buildings

⁽³⁾ 7.6.1 ⁽³⁾ Redevelopment of Multi-Dwelling Buildings of Co-Operative Housing Societies / Apartments

- i) FSI allowed for redevelopment shall be FSI of existing authorized building and incentive FSI to the extent of 30% of existing built up area or 15 Sq.m. per tenement, whichever is more.
Provided further that if the existing authorized built up area and incentive thereon as stated above is less than maximum building potential mentioned in Regulation No.6.1 or 6.3, as the case may be, then society may avail premium FSI / TDR upto maximum building potential. Such incentive FSI shall not be applicable for redevelopment of existing bungalow.
- ii) In cases where carpet area occupied by residential tenement in the existing building is less than the carpet area of 27.87 sq.m. then such tenement shall be entitled for minimum carpet area of 27.87 sq.m. and difference of these areas shall be allowed as additional FSI without any premium.
In case of non-residential occupier the area to be given in the reconstructed building shall be equivalent to the area occupied in the old building.
- iii) This regulation shall be applicable only when existing members of the societies are proposed to be re-accommodated.
- iv) If tenanted building/s and building/s of co-operative housing society / non-tenanted building/s coexist on the plot under development, then proportionate land component as per existing authorized built up area of existing tenanted building on the plot shall be developed as per Regulation No.7.6.2 and remainder notional plot shall be developed as per this regulation.

Chapter 6. General building requirements – setback, marginal distance, height and permissible FSI

Clause 6.3 Permissible FSI

Table 6-G								
Sr. No.	Road width in meters	Basic FSI	For all Municipal Corporations ⁽²⁾ CIDCO as Planning Authority by Virtue of NTDA			For remaining Authorities / Areas		
			FSI on payment of premium	Maximum permissible TDR loading	Maximum building potential on plot including in-situ FSI	FSI on payment of premium	Maximum permissible TDR loading	Maximum building potential on plot including in-situ FSI
1	2	3	4	5	6	7	8	9
1	Below 9.0 m.	1.10	--	--	1.10	--	--	1.10
2	9.0 m. and above but below 12.0 m.	1.10	0.50	0.40	2.00	0.30	0.30	1.70
3	12.0 m. and above but below 15.0 m.	1.10	0.50	0.65	2.25	0.30	0.60	2.00
4	15.0 m. and above but below 24.0 m.	1.10	0.50	0.90	2.50	0.30	0.70	2.10
5	24.0 m. and above but below 30.0 m.	1.10	0.50	1.15	2.75	0.30	0.90	2.30
6	30.0 m. and above	1.10	0.50	1.40	3.00	0.30	1.10	2.50

Note –

- i) In addition to above, ancillary area FSI up to the extent of 60% of the proposed FSI in the development permission (including Basic FSI, Premium FSI, TDR but excluding the area covered in Regulation No.6.8) shall be allowed with the payment of premium as specified in Regulation No.6.1.1. This shall be applicable to all buildings in all zones.
Provided that in case of non-residential use, the extent of ancillary area FSI shall be upto 80%. No separate calculation shall be required to be done for this ancillary area FSI. Entire FSI in the development permission shall be calculated and shall be measured with reference to permissible FSI, premium FSI, TDR, additional FSI including ancillary area FSI added therein.
Provided further that, this ancillary area FSI shall be applicable to all other schemes like TOD, PMAY, ITP, IT, MHADA, etc. except ⁽¹⁾ Rehabilitation component in SRA. In the result, free of FSI items in the said schemes, if any, other than mentioned in UDPCR, shall stand deleted.

Chapter 7. Higher FSI for certain uses

(1) 7.13 (1) COMMERCIAL BUILDINGS IN CBD, COMMERCIAL, RESIDENTIAL ZONE IN PLANNING AUTHORITIES AREAS

Additional FSI for Commercial user development in Central Business District (CBD) or plot situated in Residential or Commercial Zone or Independent plot wherein Residential or Commercial uses allowed in Industrial zone :

The Authority may allow FSI up to 5.0 including permissible FSI as per provision of Regulation No.6.3, Table No.6-G in Chapter - 6 for commercial user / development on plots marked as CBD or plots situated in Residential or Commercial zone or independent plot wherein Residential or Commercial uses allowed in Industrial zone after compliance of Regulation No.4.8.1 of these Regulations subject to the condition that permissible FSI as per Table No.6-G will be utilized first and the additional FSI under this Regulation on payment of premium subject to following conditions :

- 1) Additional FSI shall be allowed for plots which are not reserved / designated in the D.P. except affected by proposed D.P. roads / sanctioned regular line of street under M.M.C. Act and parking reservation.
- 2) The development of reserved / designated plots in CBD shall be governed by provisions of these Regulations.
- 3) Development for residential purpose to the extent of maximum 30% of the permissible FSI as per provisions of Regulation No.6.3, Table No.6-G may be allowed. Additional FSI as per this regulation shall not be permissible for residential user / development.
- 4) Premium for granting such additional BUA beyond permissible FSI as per Table No.6-G shall be charged at the rate of 50% of ASR for land and shall be equally shared between the GoM and the Authority.
- 5) Provision of Inclusive Housing shall not be applicable for development in CBD.

Provided further that in case the entire commercial development is on a plot situated in Commercial zone / independent plot in Residential zone, and satisfies other related provisions of these regulations, the Authority may allow FSI as detailed below including permissible FSI as per provision of Regulation No.6.3, Table No.6-G for commercial uses/ development on area of plots excluding area covered under reservation / designation in the DP except affected by proposed DP roads / sanctioned RL under MMC Act on payment of premium for built up area @ 50% of ASR for open developed land for FSI 1.00 and shall be equally shared between the GoM and Authority. In this case, no residential development will be allowed on such plot.

Sr. No.	Minimum	Maximum Permissible FSI
1	12 m.	3
2	18 m.	4
3	27 m.	5

Chapter 6. General building requirements – setback, marginal distance, height and permissible FSI

Clause 6.2 Regulations for Outside Congested Area (Non-Congested Area).

Clause 6.2.1 Marginal Distances and Set-back for Residential Buildings and Mixed Use

Table No.6-D							
Sr. No	Description of the road	Min. Plot Size in sq.m.	Min. width of plot in meters	Min. setback from road side in meters	Min. side margins in meters	Min. rear margins in meters	Remarks
1	2	3	4	5	6	7	8
1	Roads of width 30.0 m. and above in local authority area.	450	15	6.0 in case of A, B, C class Municipal Corporations and 4.50 in case of other areas.	3.0	3.0	Side and Rear Margins for building upto 15.0 m height (excluding parking floor upto 6 m. height)
2	In case of Regional Plan area. NH / SH	450	15	4.5 or as specified by Highway rules whichever is more.	3.0	3.0	Side and Rear Margins for building upto 15.0 m height (excluding parking floor upto 6.0 m. height)
3	Roads of width 18.0 m. and above but below 30.0 m.	250	10	4.5	2.0	2.0	Side and Rear Margins for building upto 10.0 m height (excluding parking floor upto 6.0 m. height)
4	Roads of width 15.0 m. and above but below 18.0 m.	200	10	3.0	1.5	1.5	Margins for buildings G + 2 or stilt + 3 structure

Clause 6.2.3 Marginal Distances for Buildings of Higher Heights

6.2.3 Marginal distances for buildings of heights more than mentioned in Table No.6-D of Regulation No.6.2.1

- ^(#) (a) **Front Margin** - Front margin shall be as given in Table No.6-D shall be applicable to a building irrespective of its height.

Provided that, in the case of group housing schemes where building abuts on internal road, the minimum 3.0 m. set back from internal road or distance between two buildings, whichever is more, shall be provided. For Development / Regional Plan roads or classified roads or through roads, passing through Group Housing Schemes, the setback as prescribed in these regulations shall be provided.

- ^(#) (b) **Side or rear marginal distance** - Side or rear marginal distance in relation to the height of the building for light and ventilation shall be as below :-

The marginal distance on all sides shall be as per Table No.6-D / Table No.6-E for building height or floors mentioned therein. For height more than stipulated in Table No.6-D / Table No.6-E, the marginal distance on all sides, except the front side of a building, shall be minimum $H / 5$ (Where H = Height of the building above ground level).

Provided that, such marginal distance shall be subject to a maximum of 12.0 m. from the plot boundary and distance between two buildings shall be ⁽¹⁾ as per Regulation No.6.2.4.

Provided further that, in case of redevelopment of building which has ceased to exist in consequence of accidental fire / natural collapse / demolition for the reason of the same having been declared dangerous or dilapidated or unsafe by or under a lawful order of the authority or building having an age of more than 30 years, such marginal distance may be allowed upto 6.0 m. for height of building upto 45 m. For redevelopment of smaller plots having area less than 1000 sq.m., one of the side margin / rear margin of 6.0 m may be relaxed subject to Fire NOC in case of bonafide hardship.

Provided further that, such marginal distance from recreational open space shall be 3.0 m. in case of non-special buildings and 6.0 m. in case of special buildings, irrespective of its height.

Provided further that, the building height for the purposes of this regulation and for calculating the marginal distances shall be exclusive of height of parking floors upto 6.0 m.

Provided further that, where rooms do not derive light and ventilation from the exterior open space, i.e. dead walls, such marginal distance may be reduced ⁽¹⁾ to 6.0 m. in case of special building and 3.0 m. in case of other buildings.

Provided further that the plot / land of the owner falls within the jurisdiction of more than one authority, then continuous building (without leaving margin on the boundary of the authorities) may be allowed with the consent of the other Authorities.

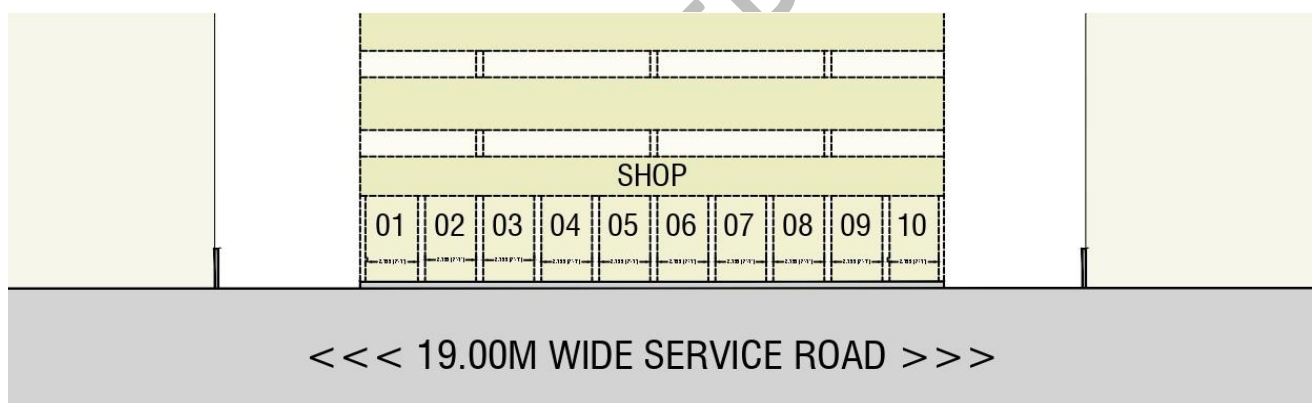
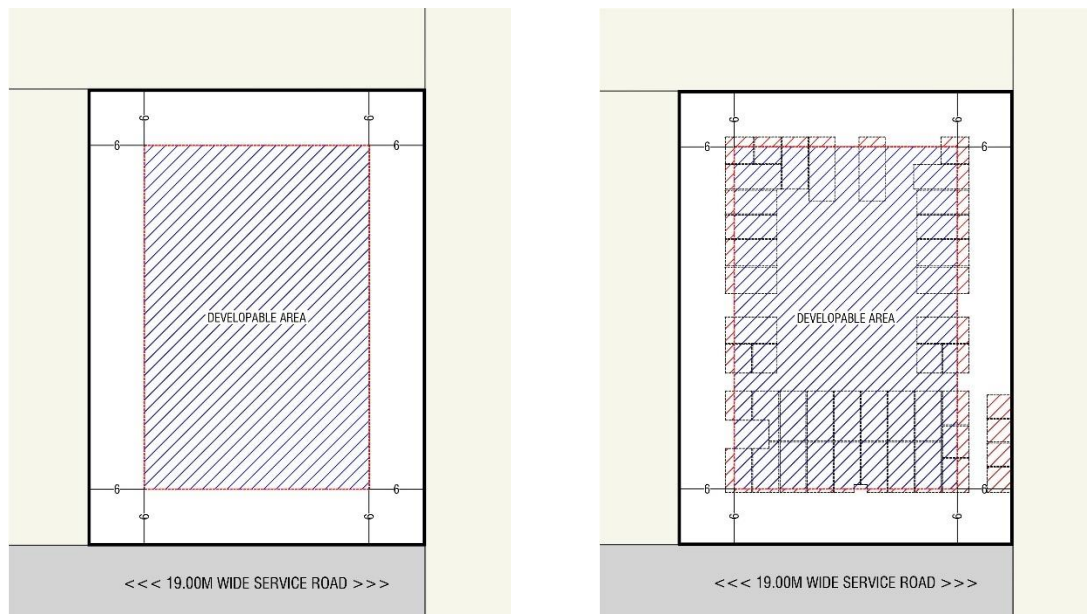
- (c) **Provision for Step Margin** :- Step margins may be allowed to be provided on upper floors to achieve required side or rear marginal distances as mentioned in these regulations subject to minimum marginal distance of 6.0 m. on ground level in case of special building.

This provision shall also be applicable to congested area.

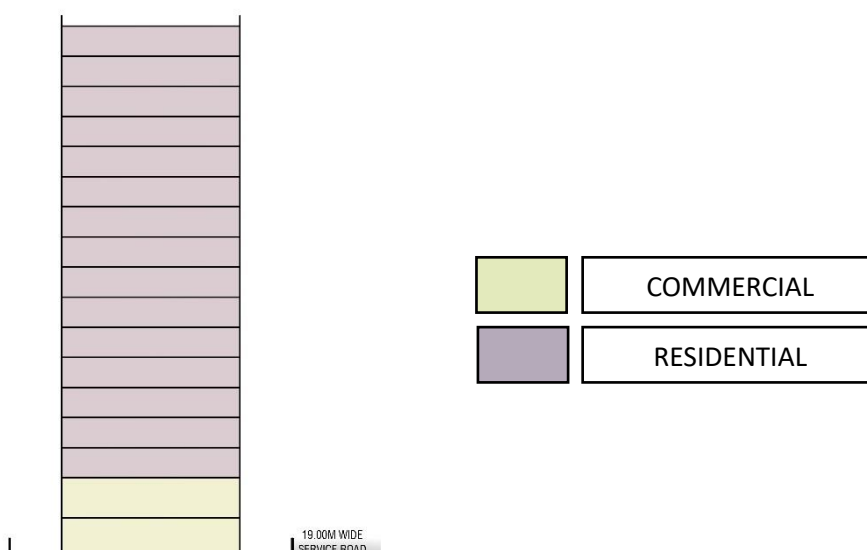
Note:

- Table No. 6-E states the minimum road width, minimum marginal distances, etc. for other buildings such as Mercantile Buildings, Educational Buildings, Public and Semi-Public Building, etc.

Minimum margins required as per Regulations for Outside Congested Area (Non-Congested Area) and Existing Approved Layout with area under marginal distance.



Schematic section for Proposed Residential cum Commercial Building



8. Directives u/s 79(A) of Maharashtra Co Operative Societies Act, 1960 to all Co-Operative Housing Societies

सहकारी गृहनिर्माण संस्थांच्या
इमारतींचा पुनर्विकास करण्याबाबत,

महाराष्ट्र शासन

सहकार, पणन व वस्त्रोद्योग विभाग

शासन निर्णय क्रमांक :- सगृयो २०१८/प्र.क्र. ८५/१४-स,

१४ वा मजला, नवीन प्रशासन भवन,

मादाम कामा रोड, हुतात्मा राजगुरु चौक,

मंत्रालय, मुंबई-४०० ०३२.

दिनांक:- ०४ जूलै, २०१९ .

पहा :- शासन निर्णय, सहकार पणन व वस्त्रोद्योग विभाग, क्रमांक
सगृयो-२००७/ प्र.क्र.५५४/१४-स, दि.३.१.२००९.

प्रस्तावना-

महाराष्ट्र राज्यामध्ये सहकारी गृहनिर्माण संस्थांच्या इमारतींच्या पुनर्विकास योजना मोठ्या प्रमाणावर सुरु आहेत. पुनर्विकसित होणाऱ्या सहकारी संस्थांच्या व्यवस्थापनाबाबत गृहनिर्माण संस्था, गृहनिर्माण संघ व वैयक्तिक सभासदांच्या अनेक तक्रारी प्राप्त होतात. बहुतांशी सहकारी गृहनिर्माण संस्थांचा पुनर्विकास करतांना प्राप्त होणाऱ्या तक्रारींचे स्वरूप खालीलप्रमाणे आहे :-

- १) पुनर्विकास प्रक्रियेत सभासदांना विश्वासात न घेणे.
- २) निविदा प्रक्रियेमध्ये पारदर्शकता नसणे.
- ३) मनमानीपणे ठेकेदारांच्या नियुक्त्या करणे.
- ४) सहकारी कायदा, नियम व उपविधीतील तरतुदींचे उल्लंघन करून कामकाज करणे.
- ५) वास्तुविशारद व प्रकल्प सल्लागार यांनी करावयाच्या कामात सुसूत्रता नसणे.
- ६) पुनर्विकास प्रकल्प अहवालाचे नियोजन न करणे.
- ७) निविदा अंतिम करण्यासाठी योग्य त्या कार्यपद्धतीचा अवलंब न करणे.
- ८) विकासकांशी करावयाच्या करारनाम्यात समानता नसणे.

२. शासनाने दिनांक ३ जानेवारी, २००९ च्या शासन निर्णयान्वये महाराष्ट्र सहकारी संस्था अधिनियम, १९६० चे कलम ७९(अ) खाली निदेश देवून सहकारी गृहनिर्माण संस्थांच्या इमारतींचा पुनर्विकास करण्याबाबत कार्यपद्धती विहीत केली आहे. वर विहीत

करण्यात आलेल्या तक्रारीचे स्वरूप विचारात घेऊन राज्यात पुनर्विकास प्रकियेला चालना देण्याकरिता दिनांक ३ जानेवारी २००९ च्या निर्देशामध्ये बदल करणे आवश्यक आहे. सदर बाब विचारात घेता यासंदर्भात सुधारित मार्गदर्शक सुचना निर्गमित करण्याची बाब शासनाच्या विचाराधीन होती. त्यास अनुसरून संदर्भाधीन दि ३ जानेवारी, २००९ चा शासन निर्णयाद्वारे अधिक्रमित करून महाराष्ट्र सहकारी संस्था अधिनियम १९६० मधील कलम ७९(अ) नुसार शासन खालीलप्रमाणे निदेश देत आहे :-

शासन निर्णय -

१) सहकारी गृहनिर्माण संस्थेची इमारत सक्षम प्राधिकरणाने विध्वंसक किंवा पडायला आलेली किंवा राहण्यास धोकादायक किंवा त्या शेजारून जाण्यास किंवा शेजारील कोणत्याही संरचनेस किंवा ठिकाणास धोकादायक म्हणून जाहीर केली असेल आणि विकास नियंत्रण नियमानुसार संस्था इमारत पुनर्विकास करण्यासाठी पात्र ठरत असेल तर संस्था सर्वसाधारण सभेमध्ये त्या इमारतीचा पुनर्विकास करण्याबाबतचा निर्णय घेवू शकते.

२) सदर निदेश विकासकाकडून कराराद्वारे होणारा पुनर्विकास, स्वपुनर्विकास, संघीय संस्थेतील होणारा समूह पुनर्विकास, संस्थांच्या गटामार्फत होणारा पुनर्विकास इ. संस्थांकडून होणाऱ्या सर्व प्रकारच्या पुनर्विकासाकरिता लागू राहतील. विकासकाच्या नियुक्तीकरिता निर्धारित करण्यात आलेल्या सर्व कार्यपद्धती ह्या उपरोक्त नमूद सर्व प्रकारच्या पुनर्विकासाकरिता, कंत्राटदाराची नियुक्ती करण्याकरिता किंवा कराराद्वारे होणाऱ्या विकासाकरिता लागू राहतील.

३) गृहनिर्माण संस्थांच्या इमारतींचा पुनर्विकास करण्याचा निर्णय हा त्या सोसायटीच्या नोंदणीकृत उपविधी अन्वये त्या संस्थेच्या विशेष सर्वसाधारण सभेमध्ये सदरच्या मार्गदर्शक सुचनांद्वारे निर्धारित कार्यपद्धतीनुसार घेतला जाईल.

४) सहकारी गृहनिर्माण संस्थेच्या इमारतींच्या पुनर्विकासाचा निर्णय निबंधकाने नियुक्त केलेल्या प्राधिकृत अधिकारी / प्रशासक यांना घेता येणार नाही.

५) संस्थेच्या इमारतीच्या पुनर्विकासासाठी विशेष सर्वसाधारण सभेचे आयोजन करणे :-

ज्या सहकारी गृहनिर्माण संस्थांच्या इमारतींचा पुनर्विकास करावयाचा आहे अशा संस्थांच्या ५/५ पेक्षा कमी नाही इतक्या सभासदांनी संस्थेच्या उपविधीनुसार निवडून आलेल्या व कायदानुसार गठित झालेल्या संस्थेच्या व्यवस्थापन समितीच्या सधियांकडे इमारत पुनर्विकासासंबंधीच्या त्यांच्या योजना व सुचनांसह संस्थेच्या इमारतीचा पुनर्विकास करण्याबाबतचे धोरण ठरविण्यासाठी विशेष सर्वसाधारण सभेचे आयोजन करण्याकरीताचा अर्ज सादर करणे आवश्यक राहिल. अर्ज प्राप्त झाल्यावर ८ दिवसात व्यवस्थापन समिती

सभेत त्याबाबत नोंद घेवून २ महिन्यांच्या आत संस्थेचे सचिव संस्थेच्या सर्व सभासदांची विशेष सर्वसाधारण सभा बोलावतील. सभेची विषयपत्रिका संस्थेच्या प्रत्येक सभासदास १४ दिवस अगोदर द्यावी व त्याची पोहोच संस्थेच्या दफ्तरी ठेवावी. सदर सभा बोलावण्यापूर्वी संस्थेची व्यवस्थापन समिती वास्तुविशारद कायदा, १९७२ खालील वास्तुविशारद परिषदेकडील नोंदणीकृत किमान ३ वास्तुविशारदांची शासकीय / स्थानिक प्राधिकरणाकडील पॅनलवरील प्रकल्प व्यवस्थापन सल्लागार (Project Management Consultant) यांचेकडून इमारतीच्या पुनर्विकास कामाचा प्रकल्प अहवाल (Project Report) तयार करण्यासाठी दरपत्रक (Quotation) प्राप्त करून घेतील व त्यातून एका तज्ञ व्यक्तीची विशेष सर्वसाधारण सभेत निवड करण्यात येईल.

६) पारदर्शकतेच्यादृष्टीने पुनर्विकास प्रस्तावित असणाऱ्या संस्था इंटरनेटवर संकेतस्थळ तयार करतील. त्या संकेतस्थळावर पुनर्विकासाशी संबंधित सर्व प्रकारची माहिती, जसे सुचना, इतिवृत्त आणि प्रकल्प व्यवस्थापन सल्लागारांचा अहवाल इत्यादी बाबी ठेवण्यात येतील. सदरची माहिती संस्थेच्या सभासदांकरिता उपलब्ध असेल. सदर प्रकल्पासंबंधात सुचना व इतिवृत्ते सभासदांना ई-मेलद्वारे/समक्ष/नोंदणीकृत डाकेने पाठविण्यात येतील. सदर प्रकल्पासंबंधात सुचना व इतिवृत्ते ई-मेलद्वारे पाठविण्याकरिता प्रत्येक सभासदांना त्यांचा ई-मेल आयडी व संपर्क तपशिल सादर करणे आवश्यक राहील. निबंधकांना सदरच्या संकेतस्थळाबद्दल कळविण्यात येईल. तसेच उपरोक्त माहिती संस्थेच्या नोटीस बोर्डावर सभासदांच्या माहितीकरीता प्रसिध्द करतील.

७) पुनर्विकासासंदर्भात व्यवस्थापन समिती व विशेष सर्वसाधारण सभा यांच्या सुचना व इतिवृत्ताद्वारे होणारे संप्रेषण (Communication) ई-मेलद्वारे व हार्डकॉपीद्वारे सदर बैठक झाल्याच्या १५ दिवसांच्या आत संबंधित निबंधक कार्यालयास कळविणे आवश्यक राहील. सदर संस्थांनी याबाबतच्या पोचपावत्या जपून ठेवाव्यात.

८) सदरच्या विशेष सर्वसाधारण सभेत विषयवार खालीलप्रमाणे कामकाज होईल :-

१. संस्थेच्या इमारतीचा पुनर्विकास करण्याबाबत सभासदांची मागणी व प्राप्त सुचना विचारात घेवून प्राथमिक निर्णय घेणे.

२. इमारतीच्या पुनर्विकास कामासाठी शासनाचे / स्थानिक प्राधिकरणाकडील पॅनलवरील तज्ञ व अनुभवी वास्तुविशारद / प्रकल्प व्यवस्थापन सल्लागार यांची निवड करणे व त्यांनी करावयाच्या कामाच्या बाबी व अटी / शर्ती निश्चित करणे.

३. इमारत पुनर्विकासासंबंधीच्या कार्यक्रमाची रुपरेषा सादर करणे.

९) इमारत पुनर्विकासासंबंधीच्या सभासदांच्या लेखी सुचना स्विकारणे :-

संस्थेच्या सभासदांना संस्थेच्या इमारतीच्या पुनर्विकासासंबंधीच्या वास्तवदर्शीय योजना, सुचना व शिफारशी याबाबत तसेच त्यांचे माहितीतील पॅनेलवरील अनुमती व तज्ञ वास्तुविशारद / प्रकल्प व्यवस्थापन सल्लागार यांची नावे लेखी स्वरूपात समितीकडे सभेच्या तारखेपूर्वी ८ दिवस अगोदर सादर करता येतील. परंतु सदर पुनर्विकासाचे कामकाज करण्याकरीता वास्तुविशारद / प्रकल्प व्यवस्थापन सल्लागार इच्छुक असल्याबाबतचे त्यांचे पत्र संस्थेस सादर केले पाहिजे.

१०) विशेष सर्वसाधारण सभेत घ्यावयाचे निर्णय :-

अ) सहकारी गृहनिर्माण संस्थांच्या इमारतीच्या पुनर्विकासासाठी आयोजित केलेल्या विशेष सर्वसाधारण सभेचा कोरम हा संस्थेच्या एकूण सभासद संख्येच्या २/३ इतका राहील. कोरमची पूर्तता न झाल्यास सदर सभा तहकुब करण्यात येईल आणि ७ दिवसांची सुचना देवून पुढील १ महिन्याच्या आत पुन्हा आयोजित करण्यात येईल. सदर सभेस पुनःच कोरमची पूर्तता न झाल्यास सभासदांना संस्थेच्या इमारतीच्या पुनर्विकासासाठी रस नाही, असे समजून सभा रद्द करण्यात येईल व सदरचा विषय पुन्हा पुढे ३ महिन्यांपर्यंत विशेष सर्वसाधारण सभेपुढे मान्यतेसाठी आणता येणार नाही. विशेष सर्वसाधारण सभेत संस्थेच्या पुनर्विकासासाठीच्या सर्व सभासदांच्या सुचना, शिफारशी व हरकती या विचारात घेतल्या जातील व सर्व सभासदांची याबाबत नमूद केलेली मते ही सभेच्या इतिवृत्तात नावासह नमूद करण्यात येतील. या सर्वसाधारण सभेत संस्थेचा पुनर्विकास करावयाचा किंवा कसे, याबाबतचा प्राथमिक निर्णय संस्थेच्या एकूण सभासद संख्येच्या किमान ५१% पेशा कमी नाही इतक्या उपस्थित सभासदांच्या बहुमताने मंजूर करण्यात येईल. सदरच्या निर्णयाकरिता संस्थेच्या एकूण सभासद संख्येच्या किमान ५१% सभासदांची मान्यता आवश्यक राहील. याकरिता सर्वसाधारण सभेत कोणत्याही अनुपस्थित सभासदांची लेखी/तोंडी अथवा इतर कोणत्याही प्रकारची मान्यता, मत, अभिप्राय विचारात घेण्यात येणार नाही.

अशाप्रकारे संस्थेच्या एकूण सभासदांच्या ५१% पेशा कमी नाही इतक्या बहुमताने सदरचा निर्णय मंजूर करण्यात येईल. (उदाहरणार्थ, एखादया गृहनिर्माण संस्थेची एकूण सभासद संख्या १०० असल्यास, त्या संस्थेच्या पुनर्विकासासाठी आयोजित केलेल्या विशेष सर्वसाधारण सभेचा कोरम ६६.६६ म्हणजेच ६७ सभासद इतका राहील आणि बहुमताकरीता त्यापैकी ५१ किंवा अधिक सभासदांची मान्यता आवश्यक राहील. म्हणजेच

९) इमारत पुनर्विकासासंबंधीच्या सभासदांच्या लेखी सुचना स्विकारणे :-

संस्थेच्या सभासदांना संस्थेच्या इमारतीच्या पुनर्विकासासंबंधीच्या वास्तवदशीय योजना, सुचना व शिफारशी याबाबत तसेच त्यांचे माहितीतील पॅनेलवरील अनुमती व तज्ञ वास्तुविशारद / प्रकल्प व्यवस्थापन सल्लागार यांची नावे लेखी स्वरूपात समितीकडे सभेच्या तारखेपूर्वी ८ दिवस अगोदर सादर करता येतील. परंतु सदर पुनर्विकासाचे कामकाज करण्याकरीता वास्तुविशारद / प्रकल्प व्यवस्थापन सल्लागार इच्छुक असल्याबाबतचे त्यांचे पत्र संस्थेस सादर केले पाहिजे.

१०) विशेष सर्वसाधारण सभेत ध्यावयाचे निर्णय :-

अ) सहकारी गृहनिर्माण संस्थांच्या इमारतीच्या पुनर्विकासासाठी आयोजित केलेल्या विशेष सर्वसाधारण सभेचा कोरम हा संस्थेच्या एकूण सभासद संख्येच्या २/३ इतका राहिल. कोरमची पूर्तता न झाल्यास सदर सभा तहकुब करण्यात येईल आणि ७ दिवसांची सुचना देवून पुढील १ महिन्याच्या आत पुन्हा आयोजित करण्यात येईल. सदर सभेस पुनःक्ष कोरमची पूर्तता न झाल्यास सभासदांना संस्थेच्या इमारतीच्या पुनर्विकासासाठी रस नाही, असे समजून सभा रद्द करण्यात येईल व सदरचा विषय पुन्हा पुढे ३ महिन्यांपर्यंत विशेष सर्वसाधारण सभेपुढे मान्यतेसाठी आणता येणार नाही. विशेष सर्वसाधारण सभेत संस्थेच्या पुनर्विकासासाठीच्या सर्व सभासदांच्या सुचना, शिफारशी व हरकती या विचारात घेतल्या जातील व सर्व सभासदांची याबाबत नमूद केलेली मते ही सभेच्या इतिवृत्तात नावासह नमूद करण्यात येतील. या सर्वसाधारण सभेत संस्थेचा पुनर्विकास करावयाचा किंवा कसे, याबाबतचा प्राथमिक निर्णय संस्थेच्या एकूण सभासद संख्येच्या किमान ५१% पेशा कमी नाही इतक्या उपस्थित सभासदांच्या बहुमताने मंजूर करण्यात येईल. सदरच्या निर्णयाकरिता संस्थेच्या एकूण सभासद संख्येच्या किमान ५१% सभासदांची मान्यता आवश्यक राहिल. याकरिता सर्वसाधारण सभेत कोणत्याही अनुपस्थित सभासदांची लेखी/तोंडी अथवा इतर कोणत्याही प्रकारची मान्यता, मत, अग्निप्राय विचारात घेण्यात येणार नाही.

अशाप्रकारे संस्थेच्या एकूण सभासदांच्या ५१% पेशा कमी नाही इतक्या बहुमताने सदरचा निर्णय मंजूर करण्यात येईल. (उदाहरणार्थ, एखाद्या गृहनिर्माण संस्थेची एकूण सभासद संख्या १०० असल्यास, त्या संस्थेच्या पुनर्विकासासाठी आयोजित केलेल्या विशेष सर्वसाधारण सभेचा कोरम ६६.६६ म्हणजेच ६७ सभासद इतका राहिल आणि बहुमताकरीता त्यापैकी ५१ किंवा अधिक सभासदांची मान्यता आवश्यक राहिल. म्हणजेच

क) शासनाचे प्रचलित धोरणानुसार तसेच जमीनीच्या मालकीप्रमाणे म्हाडा / एस.आर.ए / महानगरपालिका यांची त्या-त्या वेळी लागू असणारी नियमावली विचारात घेवून संस्थेच्या इमारती व जमिनीनुसार उपलब्ध होणारा एफ.एस.आय. व टी.डी.आर. यांची माहिती प्राप्त करून घेणे. त्यानुसार संबंधित संस्थांनी या संदर्भातील कार्यवाही करणे आवश्यक राहिल.

ख) संस्थेच्या सभासदांच्या पुनर्विकासाबाबतच्या सुचना, शिफारशी विचारात घेवून, सभासदांसाठी उपलब्ध करावयाचे निवासी क्षेत्र, व्यापारी क्षेत्र, मोकळी जागा, बगीचा, पार्किंग, बांधकामाचे स्पेसिफीकेशन इ. बाबी विचारात घेवून वास्तववादी प्रकल्प अहवाल तयार करणे.

ग) वास्तुविशारद / प्रकल्प व्यवस्थापन सल्लागार यांनी त्यांचे नियुक्तीचे दिनांकापासून दोन महिन्यांचे आत प्रकल्प अहवाल तयार करून, तो संस्थेच्या व्यवस्थापन समितीकडे सादर करावा.

१५) पुनर्विकास प्रकल्प अहवाल प्राप्त झाल्यानंतरची कार्यवाही :-

अ) संस्थेचा सचिव वरीलप्रमाणे पुनर्विकास प्रकल्प अहवाल प्राप्त झाल्यावर व्यवस्थापन समितीची सभा बोलावतील. सदर सभेत वास्तुविशारद / प्रकल्प व्यवस्थापन सल्लागार यांना निमंत्रित करून त्या सभेत सभासदांच्या सुचना विचारत घेवून, प्रकल्प अहवालास मान्यता देण्यात येईल. सदर सभेची नोटीस, सभेची वेळ व ठिकाण इत्यादींसह संस्थेच्या नोटीस बोर्डावर प्रसिद्ध करतील. सदर नोटीशीमध्ये प्राप्त प्रकल्प अहवालाची प्रत संस्थेच्या सभासदांना संस्थेच्या कार्यालयात पाहण्यासाठी उपलब्ध असल्याबाबत व पुढील होणाऱ्या समिती सभेपूर्वी ७ दिवस अगोदर सुचना सादर करणेबाबतची नोटीस प्रत्येक सभासदास देवून त्याची पोहोच दफ्तरी ठेवण्यांत येईल.

ब) वरीलप्रमाणे व्यवस्थापन समिती सभेपूर्वी ७ दिवस अगोदर सभासदांकडील प्राप्त सुचना संस्थेचे सचिव वास्तुविशारद / प्रकल्प व्यवस्थापन सल्लागार यांचेकडे विचारार्थ पाठवतील.

क) सदर व्यवस्थापन समिती सभेत सभासदांकडील सुचना / शिफारशी व वास्तुविशारद / प्रकल्प व्यवस्थापन सल्लागार यांची मते या सर्व बाबींवर सर्वंकष चर्चा होऊन, आवश्यक ते बदल करून प्रकल्प अहवालास बहुमताने मान्यता देण्यात येईल व निविदा मसुदा तयार करून त्यासंबंधी चर्चा / विचारविनिमय करून, निविदा मसुदा अंतिम करण्याबाबतच्या पुढील व्यवस्थापन सभेची तारीख, वेळ व ठिकाण निश्चित करण्यात

येईल. निविदा मसुदा तयार करताना वास्तुविशारद / प्रकल्प व्यवस्थापन सल्लागार नामांकित तज्ञ व अनुभवी विकासकांकडून स्पर्धात्मक निविदा प्राप्त होण्यासाठी कार्पेट एरिया व कॉर्पस फंड यापैकी एक बाब कायम (न बदलणारी) ठेवून व इतर तांत्रिक बाबी निश्चित करून निविदा मागवतील. संस्थेच्या सभासदांना त्यांचे माहितीतील नामांकित व अनुभवी विकासकांना याबाबत माहिती देता येईल. स्वपुनर्विकासाच्या प्रकरणी देखील प्रकल्प अहवाल निविदा तयार करताना आणि कंत्राटदारांकडून निविदा मागविताना संस्था व वास्तुविशारद / प्रकल्प व्यवस्थापन सल्लागार यांनी वर नमूद केलेलीच कार्यपद्धती अनुसरावी.

१६) प्राप्त निविदांची यादी जाहीर करणे:-

अ) संस्थेचे सचिव निविदा मिळण्याच्या शेवटच्या दिवशी किती निविदा प्राप्त झाल्या, याची यादी तयार करून ती संस्थेच्या नोटीस बोर्डावर प्रसिध्द करतील.

ब) संस्थेचे सचिव, निविदा प्राप्त होण्याच्या शेवटच्या तारखेनंतर १५ दिवसांचे आत संस्थेच्या व्यवस्थापन समितीची सभा बोलावतील. सदर सभेस निविदाकार अथवा त्यांचे अधिकृत प्रतिनिधी व संस्थेतील इच्छुक सभासद यांना उपस्थित राहण्यास मज्जाव करता येणार नाही. प्राप्त झालेल्या निविदा सभेस उपस्थित असलेल्या सर्वासमक्ष उघडण्यात येतील. वास्तुविशारद / प्रकल्प व्यवस्थापन सल्लागार सर्व निविदांची छाननी करून तुलनात्मक तक्ता तयार करतील व प्राप्त निविदाधारकांची गुणवत्ता, प्रतिष्ठा, अनुभव व स्पर्धात्मक दर इत्यादी बाबी तपासून कमीत कमी ३ निविदा प्राप्त झाल्या असल्यास, सदर निविदा विशेष सर्वसाधारण सभेमध्ये ठेवण्यासाठी मंजूर करतील. निविदा स्पर्धात्मक होण्यासाठी कमीत कमी ३ निविदा प्राप्त होणे आवश्यक आहे. तथापि, ३ पेक्षा कमी निविदा प्राप्त झाल्यास प्रथम किमान एका आठवड्याची मुदतवाढ द्यावी. अशी मुदतवाढ दिल्यानंतरदेखील ३ पेक्षा कमी निविदा प्राप्त झाल्यास दुसऱ्यांदा १ आठवड्याची मुदतवाढ द्यावी. तरीदेखील ३ पेक्षा कमी निविदा प्राप्त झाल्यास जेवढ्या निविदा प्राप्त झाल्या आहेत तेवढ्या निविदा विशेष सर्वसाधारण सभेमध्ये ठेवण्यासाठी मंजूर करण्यात येतील.

१७) विकासकाची निवड करणे:-

अ) सर्वसाधारण सभेसाठी निबंधक कार्यालयाकडून प्राधिकृत अधिकारी नियुक्त करणे:-

संस्थेच्या व्यवस्थापन समितीने वास्तुविशारद / प्रकल्प व्यवस्थापन सल्लागार यांचे मदतीने निवड केलेल्या निविदांमधून एका विकासकाची त्याचा अनुभव, गुणवत्ता, आर्थिक क्षमता, तांत्रिक क्षमता व स्पर्धात्मक दर इ. विविध कसोट्यांवर निवड करण्यासाठी संस्थेची विशेष सर्वसाधारण सभा बोलावण्यात येईल. व्यवस्थापन समितीने सदरची विशेष

सर्वसाधारण सभा सहकारी संस्थांच्या निबंधक कार्यालयांच्या प्रतिनिधींच्या उपस्थितीत होण्यासाठी प्राधिकृत अधिकारी नियुक्त करण्याकरिता निबंधकाकडे सभासद यादीसह ७ दिवसात अर्ज सादर करावा. त्यावर निर्णय घेवून निबंधक प्राधिकृत अधिकारी यांची नेमणूक करतील. निवडक विकासक किंवा त्यांचे सहयोगी किंवा सहाय्यक यांचा महारेराकडे किमान एक प्रकल्प नोंदणीकृत असणे आवश्यक राहिल.

ब) निविदा अंतिम करण्यासाठी विशेष सर्वसाधारण सभा बोलाविणे :-

संस्थेचे सचिव, विकासकाच्या नियुक्तीकरीता, प्राधिकृत अधिकारी नियुक्तीनंतर एका महिन्याच्या आत त्यांचे पूर्व परवानगीने वेळ व ठिकाण निश्चित करून विशेष सर्वसाधारण सभा बोलावतील व या सभेची विषयपत्रिका सर्व सभासदांना सभेच्या १४ दिवस अगोदर हस्तदितरण व डाक-देय पोस्टाने पाठवून तसेच भारताबाहेर राहणाऱ्या सभासदांना ई-मेलद्वारे पाठवून त्याची पोहोच संस्थेच्या दफ्तरी ठेवतील. सदर विषयपत्रिका पुनर्विकास कामाकरिता तयार करण्यात आलेल्या संस्थेच्या संकेतस्थळावर अपलोड करतील. सभेपुढे ज्या निविदा सादर करावयाच्या आहेत त्यांचे अधिकृत प्रतिनिधी उपस्थित असल्याबाबत निबंधक कार्यालयाचे प्रतिनिधी खात्री करतील. तसेच विशेष सर्वसाधारण बैठकीचे संस्थेच्या खर्चाने व्हिडीओ चित्रिकरण करण्याची व्यवस्था करतील. सदर सभेत अधिकृत सभासदांव्यतिरिक्त कोणासही उपस्थित राहता येणार नाही. यासाठी सभासदांनी सभेच्या ठिकाणी ओळखपत्र स्वतःजवळ बाळगणे आवश्यक राहिल. संबंधित प्राधिकारणाकडे पुनर्विकास प्रस्ताव मंजूरीसाठी सादर करताना विकासकाची निवड व इतर कामकाज वास्तुविशारद / प्रकल्प व्यवस्थापन समिती यांचे कार्यालयातील अधिकृत अधिकारी यांच्या उपस्थितीत होणे आवश्यक राहिल.

क) विशेष सर्वसाधारण सभेचा कोरम नसल्यास:-

विशेष सर्वसाधारण सभेचा कोरम हा संस्थेच्या एकूण सभासदांच्या २/३ इतका राहिल. कोरमची पूर्तता न झाल्यास सभा पुढील ७ दिवसांसाठी तहकूब करण्यात येईल व सदर सभेस पुनःच कोरमची पूर्तता न झाल्यास सभासदांना संस्थेच्या इमारतीच्या पुनर्विकासासाठी रस नाही, असे समजून सभा रद्द करण्यात येईल व सदरचा विषय पुन्हा पुढे ३ महिन्यांपर्यंत विशेष सर्वसाधारण सभेपुढे मान्यतेसाठी आणता येणार नाही.

ड) विकासक निवडीबाबत विशेष सर्वसाधारण सभेतील कामकाज:-

सदर सभेस निबंधक कार्यालयातील प्राधिकृत अधिकारी उपस्थित राहतील व सभेतील कामकाजाचे निरीक्षण करतील. तसेच सभेच्या ठिकाणी व वेळी आवश्यक प्रतिनिधी व प्राधिकृत अधिकारी उपस्थित झाल्यावर व वरील प्रमाणे २/३ इतका कोरम पूर्ण झाल्यावर सभेचे कामकाज खालीलप्रमाणे होईल:-

१. सादरीकरणासाठी निवड केलेल्या निविदांसंबंधी तुलनात्मक माहिती देणे.
(पुनर्विकास कामासंबंधी)
२. निविदा क्रमाने सादर करणे (निविदांचे सादरीकरण).
३. इमारत पुनर्विकासासाठी एका विकासकाची /कंत्राटदाराची अटी व शर्तीसह निवड करणे व निविदा अंतिम करणे.
४. निवड झालेल्या विकासकाकडून / कंत्राटदाराकडून संमती घेणे.
५. पुढील कामकाजाबाबत माहिती घेणे -

विकासक / कंत्राटदार यांच्या नियुक्तीस संस्थेच्या एकूण सभासद संख्येच्या किमान ५१% पेक्षा कमी नाही इतक्या उपस्थित सभासदांची लेखी मान्यता घेणे आवश्यक राहिल. या करिता सर्वसाधारण सभेत कोणत्याही अनुपस्थित सभासदांची लेखी/तोंडी अथवा इतर कोणत्याही प्रकारची मान्यता, मत , अभिप्राय विचारात घेण्यात येणार नाही. निवड झालेले जे विकासक /कंत्राटदार किंवा त्यांचे प्रतिनिधी सभेसाठी उपस्थित राहणार नाहीत त्यांची सदर प्रकल्पासाठी संमती आहे असे ग्राह्य धरून पुढील कार्यवाही करण्यात येईल.

१८) विकासकाशी करावयाचा करारनामा:-

संस्थेच्या व्यवस्थापन समितीने मंजूर केलेल्या अटी व शर्तीस अधिन राहून वास्तुविशारद / प्रकल्प व्यवस्थापन सल्लागार यांच्या मार्गदर्शनानुसार विकासक / कंत्राटदार यांच्या सोबत ३ महिन्यांच्या आत करारनामा करावा.

करारनाम्यात संस्थेचे नियुक्त वास्तुविशारद / प्रकल्प व्यवस्थापन सल्लागार यांनी सुचविल्याप्रमाणे इतर मुद्यांसोबतच खालील मुद्यांचाही समावेश असेल :-

१) पुनर्विकास प्रकल्पाच्या आकारमानानुसार पहिल्या / पाया उभारणी प्रमाणपत्राच्या तारखेपासून संस्थेच्या पुनर्विकासाचा / बांधकामाचा प्रकल्प पूर्ण करावयाचा कालावधी २ वर्षांपेक्षा जास्त असणार नाही व अपवादात्मक परिस्थिती ३ वर्षांपेक्षा जास्त असणार नाही.

२) पुनर्विकास प्रकल्पाच्या एकूण किंमतीच्या २०% इतकी बँक गॅरन्टी विकासक संस्थेस देईल.

३) विकासक पुनर्विकास कालावधीत सभासदांना शक्यतो त्याच क्षेत्रात प्रकल्प पूर्ण होईपर्यंत निवासाची पर्यायी सोय उपलब्ध करून देईल किंवा सभासदांना मान्य होईल असे मासिक भाडे व डिपॉजिट देण्याची व्यवस्था करेल किंवा अशी संक्रमण शिबीरे उपलब्ध करून देईल .

४) संस्थेसोबतचा विकास करारनामा आणि वैयक्तिक सभासदासोबतचा स्थायी

पर्यायी निवासी करार (Permanent Alternative Accommodation Agreement) हा रजिस्ट्रेशन ॲक्ट, १९०८ प्रमाणे नोंदणीकृत करण्यात येईल.

५) संस्थेमध्ये नवीन सभासद हे पुनर्विकास प्रकल्प पुर्ण झाल्यावर संस्थेच्या सर्वसाधारण सभेच्या मान्यतेनेच घेण्यात येतील.

६) करारनाम्यात Real Estate (Regulation And Development) Act, २०१६ नुसार देय कारपेट एरियाचा स्पष्ट उल्लेख असावा .

७) विकासकास दिलेले विकास हक्क हे अहस्तांतरणीय असतील.

८) इमारत पुनर्विकासासाठी सर्व कायदेशीर मान्यता मिळाल्यानंतरच आणि वैयक्तिक सभासदांसोबतचा स्थायी पर्यायी निवासी करार (Permanent Alternative Accommodation Agreement) नोंदणी झाल्यानंतरच गाळेधारक सभासद गाळे रिकामे करतील.

९) ज्यांच्या ताब्यात सदनिका आहेत त्यांचे हक्क अबाधित राहतील.

१०) पुनर्विकास कामात कोणताही वाद निर्माण झाल्यास तो अधिनियमातील कलम ९९ अन्वये सोडविण्याची तरतुद सदर वास्तुविशारद / कंत्राटदार आणि संस्थेमधील करारपत्रामध्ये असणे आवश्यक आहे.

११) भोगवटा प्रमाणपत्र (Occupation Certificate) मिळाल्यावर पुनर्विकसित इमारतीतील सदनीकांचे वाटप करतांना शक्य तेथे सध्याचे स्थितीनुसार मजल्यांच्या क्रमाने वाटप करण्यात यावे व सोडत पध्दतीने सदनीका वितरण करणे आवश्यक झाल्यास, इमारत पुर्ण झाल्यानंतर विकासकाने सदनीकांच्या सोडतीची व्यवस्था करावी व त्यावेळी निबंधकांच्या प्रतिनीधीच्या उपस्थितीत सोडतीने सदनीकाचे वितरण करावे व त्याचे व्हिडीओ चित्रीकरण करावे.

१२) संस्थेचा कोणीही समिती सदस्य किंवा पदाधिकारी विकासक किंवा त्याचा कोणीही नातेवाईक नसावा.

१३) महानगरपालिका / सक्षम प्राधिकरणाने मंजूर केलेल्या बांधकामाचे नकाशे परत सर्वसाधारण सभेपुढे माहितीसाठी सादर केले पाहिजे व जर एखाद्या सभासदास मान्यताप्राप्त कागदपत्रांची प्रत हवी असल्यास त्यांनी संस्थेकडे त्याबाबत लेखी अर्ज करावा. योग्य ती फी आकारून माहिती पुरविणे व्यवस्थापन समितीवर बंधनकारक राहिल.

१९) जागेची मालकी हक्क प्राप्त सहकारी गृहनिर्माण संघा अंतर्गत असलेल्या संस्थांचा समुह पुनर्विकास करणे :-

१) सहकारी गृहनिर्माण संघाच्या नावाने संलग्न संस्थांच्या इमारती व सामायिक क्षेत्राच्या जागेचे मालकी हक्क असणाऱ्या सहकारी गृहनिर्माण संघामार्फत समुह पुनर्विकास करता येईल.

२) सहकारी गृहनिर्माण संघाशी संलग्न संस्थांच्या इमारतीच्या समुह पुनर्विकासासाठी आयोजित केलेल्या विशेष सर्वसाधारण सभेचा कोरम हा संघाच्या एकूण संलग्न सभासद संस्थांच्या २/३ इतका राहिल.

३) संलग्न सहकारी संस्थांच्या इमारतीच्या पुनर्विकासाच्या प्राथमिक निर्णयासाठी आयोजित केलेल्या विशेष सर्वसाधारण सभेत वरील प्रमाणे कोरम पूर्ण झाल्यानंतर एकूण संलग्न सभासद संस्थांच्या संख्येच्या किमान ५१% पेक्षा कमी नाही इतक्या उपस्थित सभासदांच्या बहुमताने मंजूर करण्यात येईल. सदरच्या निर्णयाकरिता एकूण संलग्न सभासद संस्थांच्या संख्येच्या किमान ५१% सभासदांची मान्यता आवश्यक राहिल. या करिता सर्वसाधारण सभेत कोणत्याही अनुपस्थित सभासदांची लेखी/तोंडी अथवा इतर कोणत्याही प्रकारची मान्यता, मत, अभिप्राय विचारात घेण्यात येणार नाही.

४) संलग्न संस्थांच्या इमारतीच्या पुनर्विकासाच्या कामकाजाची सुरुवात करण्यापुर्वी संलग्न संस्थांनी खालीलप्रमाणे मंजूरी दिली पाहिजे.

संघाच्या संलग्न सर्व संस्थांनी त्यांच्या इमारतीचा पुनर्विकास करण्यासाठी प्रत्येक संस्थेच्या विशेष सर्वसाधारण सभेने त्या संस्थेच्या एकूण सभासदांच्या २/३ इतक्या सभासदांचा कोरम पूर्ण करून त्या संस्थेच्या एकूण सभासद संख्येच्या किमान ५१% पेक्षा कमी नाही इतक्या उपस्थित सभासदांच्या बहुमताने ठराव मंजूर करण्यात येईल. याकरिता त्या संस्थेच्या एकूण सभासद संख्येच्या किमान ५१% सभासदांची मान्यता आवश्यक राहिल. तसेच सर्वसाधारण सभेत कोणत्याही अनुपस्थित सभासदांची लेखी/तोंडी अथवा इतर कोणत्याही प्रकारची मान्यता, मत, अभिप्राय विचारात घेण्यात येणार नाही. तसेच प्रत्येक संस्था ठरावाच्या बाजूने मतदान केलेल्या सर्व सभासदांची लेखी संमती प्राप्त करून त्यांचे ठराव व लेखी संमती संघाच्या समितीस सादर करेल किंवा संघाशी संलग्न सर्व संस्थांच्या मिळून एकूण सभासदांच्या ६०% पेक्षा कमी नाही इतक्या सभासदांनी ठरावाच्या बाजूने मतदान करणे आवश्यक राहिल व प्रत्येक संस्था ठरावाच्या बाजूने मतदान केलेल्या सर्व सभासदांची लेखी संमती प्राप्त करून त्यांचे ठराव व लेखी संमती

संघाच्या समितीस सादर करेल.

वरीलप्रमाणे संस्थांच्या समुह पुनर्विकासासाठीचा प्राथमिक निर्णय झाल्यानंतर त्यापुढील कार्यपद्धती ही वर नमूद करण्यात आलेल्या सहकारी गृहनिर्माण संस्थेच्या पुनर्विकासाच्या कार्यपद्धती प्रमाणेच राहील.

२०) या शासन निर्णयात नमूद कार्यपद्धतीचे अवलंबन करतांना कोणतीही परिगणना करीत असताना कोणत्याही अपूर्णाकाचे उच्चतम पूर्णाकात रुपांतर करण्यात येईल.

सदर शासन निर्णय महाराष्ट्र शासनाच्या www.maharashtra.gov.in या संकेतस्थळावर उपलब्ध करण्यात आला असून त्याचा संकेतांक २०१९०७०४१५५६२०१२०२ असा आहे. हा आदेश डिजिटल स्वाक्षरीने साक्षांकित करून काढण्यात येत आहे.

महाराष्ट्राचे राज्यपाल यांच्या आदेशानुसार व नावाने

Kamalakar

Sitaram Badgujar

Digitally signed by Kamalakar Sitaram Badgujar
DN: c=IN, o=Government of Maharashtra, ou=Department of Agriculture, Fisheries and Forestry, email=kamalakar@maharashtra.gov.in, cn=Kamalakar Sitaram Badgujar

(क.सि.बडगुजर)

कार्यासन अधिकारी, महाराष्ट्र शासन

प्रत,

- १) मा.मंत्री (सहकार), यांचे खाजगी सचिव
- २) मा.राज्यमंत्री (सहकार), यांचे खाजगी सचिव,
- ३) प्रधान सचिव (सहकार), सहकार, पणन व वस्त्रोद्योग विभाग, मुंबई.
- ४) अपर मुख्य सचिव, महसूल व वन विभाग, मंत्रालय, मुंबई.
- ५) अपर मुख्य सचिव, गृहनिर्माण विभाग, मंत्रालय, मुंबई.
- ६) प्रधान सचिव, ग्रामविकास विभाग, मंत्रालय, मुंबई,
- ७) सहकार आयुक्त व निबंधक, सहकारी संस्था, महाराष्ट्र राज्य, पुणे,
- ८) सर्व विभागीय सहनिबंधक सहकारी संस्था,
- ९) सर्व जिल्हा उपनिबंधक सहकारी संस्था,
- १०) निवडनस्ती, का.१४-स,

9. Technical report

FEASIBILITY REPORT FOR RESIDENTIAL CUM COMMERCIAL USE				
PROJECT NAME		PROPOSED REDEVELOPMENT OF JAI JAWAN CO-OP HOUSING SOCIETY ON PLOT NO.01, SECTOR-17, VASHI		13-02-2026
APPROVING AUTHORITY	NMMC			 P A A PATEL ARCHITECTS & ASSOCIATES
RESERVE RATE	24740			
READY RECKNOR RATE	75800			
RESIDENTIAL RR RATE	153700			
OFFICE RR RATE	176700			
COMMERCIAL RR RATE	239500			
PLOT AREA	1850			
ROAD WIDTH	30.00M+19.00M			
REGULATION NO. OF UDCPR	7.6.1			
EXISTING TENEMENTS DATA				
		SQ.M.	SQ.FT.	
EXISTING TENEMENTS CARPET AREA		Commercial - Front	135.55	1459
		Commercial - Side & Back	479.26	5159
		Residential	2573.16	27697
		Total	3187.97	34315
NO. OF EXISTING TENEMENTS				115
Commercial - Front				10
Commercial - Side & Back				35
Residential				70
AREA STATEMENT				
		SQ.M.	SQ.FT.	
GROSS PLOT AREA			1850.00	19913
As per Ownership Document (7/12, CS Extract)			1850.00	19913
As per Physical Surevy			1850.00	19913
As per Government Survey			1850.00	19913
AREA UNDER ROAD/ RESERVATION			0.00	0
BALANCE PLOT AREA			1850.00	19913
AMENITY				
Required			0.00	0
Proposed			0.00	0
NET PLOT AREA			1850.00	19913
		Permissible FSI		
BASE FSI		2.00	3700.00	39827
ENHANCEMENT FSI		0.10	185.00	1991
PREMIUM FSI		0.50	925.00	9957
TDR FSI				
Self Generated DR		2x	0.00	0

	TDR	0.90	615.00	6620
REDEVELOPMENT FSI		0.3 or 15sq.m. per tenement	1050.00	11302
PERMISSIBLE BUA (Including TDR)		3.50	6475.00	69697
ANCILLARY FSI				
	Commercial Ancillary	80%	333.00	3584
	Residential Ancillary	60%	3635.25	39130
TOTAL ANCILLARY FSI			3968.25	42714
TOTAL FSI		5.645		
TOTAL BUA			10443.25	112411
PROPOSED CARPET AREA FOR EXISTING TENEMENTS			4463.16	48041
Commercial – Front (As is where is basis/ Expected Compensation to upper floor)		40% / 300%	189.77	2043
Commercial - Side & Back (As is where is basis/ Expected Compensation to upper floor)		40% / 150%	670.96	7222
Residential		40%	3602.42	38776
APPROXIMATE TOTAL SALE AREA				156649
APPROXIMATE SALE AREA- BUILDERS SHARE				67386
	Commercial - Ground			0
	Residential			67386
CONSTRUCTION AREA			14098.39	151755
EXPENSES				
		Existing Area of Tenements	Rent per sq.ft.	Amount
RENT	Commercial - Front	1459	260	1,36,56,904
	Commercial - Side & Back	5159	260	4,82,85,943
	Residential	27697	90	8,97,39,881
BROKERAGE		(2 Month Rent)		57,44,266
SHIFTING CHARGES (TO AND FRO)		115	20000	23,00,000
REFUNDABLE DEPOSIT		115	50000	57,50,000
CORPUS		115	200000	2,30,00,000
79A PROCEDURE				23,00,000
REGISTRATION OF FLATS OF EXISTING TENEMENTS				34,50,000
STAMP DUTY/ GST ON CARPET AREA OF EXISTING COMMERCIAL TENEMENTS				70,67,867
STAMP DUTY/ GST ON CARPET AREA OF EXISTING RESIDENTIAL TENEMENTS				1,89,83,745
DEVELOPMENT AGREEMENT COST				1,37,26,128
REDEVELOPMENT NOC				55,50,000
TOTAL				23,95,54,735
SANCTIONING COST				
				Amount
SCRUTINY			5	52,216
SECURITY CHARGES			20	2,08,865
DEVELOPMENT CHARGES- PLOT		Maximum of		
	Commercial	200	1%	1,00,608

Residential	100	0.50%	6,50,846
DEVELOPMENT CHARGES- BUA			
Commercial	800	4%	22,71,726
Residential	400	2%	1,46,96,104
METRO CESS/ VITAL CHARGES			1,77,19,284
ENHANCEMENT FSI		35%	49,08,050
PREMIUM FSI		35%	2,45,40,250
TDR FRI		35%	1,63,15,950
ANCILLARY FSI		10%	3,00,79,335
LABOUR CESS		1%	37,52,991
FIRE NOC		250	35,24,597
ENVIRONMENTAL CLEARANCE			
OVERHEAD EXPENSES			
Premium and TDR FSI		3000	46,20,000
Ancillary FSI		300	11,90,475
OVERHEAD EXPENSES			
CC		600	84,59,033
OC		1200	1,69,18,065
TOTAL			15,00,08,394
PROJECT COST			
			Amount
TOTAL CONSTRUCTION COST (Including GST)		3000	45,52,65,129
ADMIN COST		1%	1,01,07,834
MARKETING COST		5%	5,05,39,172
ALL CONSULTANT COST (Architect/Structural/MEP)		4%	1,82,10,605
CONTINGENCY		100	1,51,75,504
BANK INTEREST			6,38,82,048
TOTAL			61,31,80,293
REVENUE			
			Amount
SALE REVENUE			
Residential		15000	1,01,07,83,430
DEVELOPMENT CHARGES		500	3,36,92,781
PARKING		67	5,36,00,000
TOTAL			1,09,80,76,211
TOTAL PROJECT COST			1,00,27,43,422
TOTAL REVENUE GENERATED			1,09,80,76,211
TOTAL PROJECT PROFIT			9,53,32,789
PROFIT OVER TURNOVER			9.51%

Note- All the above calculations are based on the detail furnished by the society and prevailing bye law. This may vary during/on approval.

10. Sequence of Operations of Redevelopment:

In order to implement the Redevelopment project, the following sequence of operations has to be followed:

1. Structural audit report shall be carried out and prepared by qualified and registered structural engineer and vetted by recognized institutions like ITI or IIT Bombay.
2. Application to NMMC with the structural Audit report and vetting report and obtaining dilapidated status from the committee appointed under the chairmen ship of Municipal Commissioner, NMMC.
3. Checking the status of access road in order to get 3.50 /5.00 FSI and finalization of the proposed road network for availing 3.50 /5.00 FSI. if required.
4. Preparation and submission of detailed Project Report with 3.50 /5.00 FSI.
5. Finalization the size of the tenements (Carpet area, Usable Area, Total Built up area, parking per tenement.).
6. Finalization of the list of amenities.
7. Preparation of draft tender documents, discussing with the committee and finalizing draft tender document (Technical & Financial Bid).
8. Inviting the tenders (Technical and Commercial) from various Builders/developers.
9. The technical evaluation and preparing of comparative statement and submission to the committee & short listing of developer.
10. Conducting joint meetings with the short-listed Builders/developers along with the committee members and finalizing priority list of selected developer.
11. Calling for special general body meeting and putting a priority list of short- listed developers and seeking approval from General Body.
12. Issuing Letter of Intent based on terms negotiated with the selected Developer giving 15 days period for financial and legal compliances & issuing work order and executing development agreement.
13. Completing agreement formalities between the society and builders/developers and also between the society members and builders/developers.
14. Finalization of Building plans and layout plans with appointed builders in accordance with tenement area finalized with the Society.
15. Preparation of Municipal drawings and submission to NMMC.
16. Obtaining NOC from CIDCO by developer with payment of additional lease premium if any.
17. Appointment of Environmental Consultant by Developer & obtaining Environmental NOC if required.
18. Layout approval from NMMC with payment of Fees, Deposits, Development Charges, Premiums etc. by developer.
19. Arranging alternate accommodation to all the members of the society by the developer or the developer shall pay rent, deposit, brokerage and shifting charges and the members of the society shall arrange for alternate temporary rented accommodation.
20. Demolition of the building.
21. Carrying out soil investigation.

22. Preparation of detail structural drawings, Working Drawings, specifications as per approved plans by NMMC and list of amenities finalized by the society.
23. Construction of new buildings with day-to-day supervision & issuing necessary drawings from time to time.
24. Construction of Infra Structure such as STP, water supply systems, Recreational Ground, Roads, etc. as per Environmental NOC & approved plans by NMMC.
25. Completion of the building to the satisfaction of the Architect, PMC & Society.
26. Obtaining NOC by Developer from CIDCO with payment of premium if any for O.C. from NMMC.
27. Applying for Occupancy Certificate & obtaining the same from NMMC with payment of fees and charges by Developer.
28. Obtaining permanent water connection and Electric connection and meter to each original tenement of the Society.
29. Cleaning site and handing over possession to the original members.

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11. Stages of Redevelopment

- a. Offer letter to the society.
 - b. Terms and conditions with the society.
 - c. Agreement with the society
 - d. Sanction from NMMC in favour of the society.
 - e. Obtaining the IOD.
 - f. Obtaining the CC
 - g. Shifting of the members
 - h. Demolition of the building
 - i. Construction of the new building
 - j. Obtaining the OC.
 - k. Shifting the old members
- **Offer letter to the society:** The Housing Society is required to advertise in 2 leading newspapers inviting the sealed tenders from the Developers and a Redevelopment Committee is formed to shortlist at least 3 Developers on merits and the comparative data is placed before the SGM for final selection. The selected Developer is informed accordingly and his terms are invited in writing as an Offer letter to the society. This process shall be conducted in camera and in presence of the registrar.
 - **Terms and conditions with the society:** The first step towards the re-development is agreeing on the basic terms and conditions between the members and the Developer. The broad terms and conditions will include extra area, corpus money, shifting charges, alternate accommodation, time of re-development, amenities in the new building, etc.
 - **Finalizing the plans with members:** After due consultation with all the members, the plan will be made to suit the requirements of the existing members and will be approved by them before applying for sanction from NMMC
 - **Agreement with the society:** The execution of the development agreement will be done once the above two points have been cleared by both the parties and after the draft copy of the agreement have been approved by the solicitors of both the parties.
 - **Sanction from NMMC in favour of the society:** After the execution of the development agreement, plans are put up for sanction from NMMC with regards to the entire layout as well as the concession plans in favour of 3.50 /5.00 FSI. This step makes the society feel safe and confident towards the Developer.
 - **Obtaining the IOD:** the IOD is obtained from the NMMC, the Developer then starts fulfilling all the conditions as mentioned in the IOD before obtaining the Commencement Certificate.
 - **Obtaining the CC:** The IOD approval will be followed by the issue of the CC (plinth level) by the NMMC which shall enable the Developer to start the construction work and after the plinth lines are verified by the NMMC officers, the further CC is granted for the complete building.
 - **Shifting of the members:** The members will enter in to Permanent Alternate Accommodation Agreement with the developer before handing over peaceful possession of the property and shifting to their alternate temporary rented accommodation.

- **Demolition of the building:** Once the members have shifted into their alternate accommodation, the demolition of the building will take place either all the wings simultaneously or phase wise depending upon the scheme of re-development. Usually about one month are given to the members from the date of execution of the development agreement before asking them to shift to the alternate accommodation.
- **Construction of the building:** The building construction work will begin in full earnest as per the approved plans by the NMMC taking into consideration the various safety factors to be considered during the construction work. The quality and the amenities will be provided as per agreed terms and conditions.
- **Obtaining the OC:** The last step before the construction work is termed as complete is obtaining the Occupation Certificate enabling the Developer to allot the occupation to the old as well as the new members.
- **Shifting the old members:** On receipt of the Occupancy Certificate the Developer can lawfully allow the possession of the flats to be taken over by their owners.

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12. Duties and functions of the developer

The Developer to demolish the building existing in the plot and construct new multi storied buildings considering the earthquake resistant factors as directed by the NMMC. The final plans are to be prepared after due consultation with the managing committee and understanding their requirements.

The Developer shall be responsible to obtain all the necessary approvals from NMMC & CIDCO and all other statutory and Government offices and departments which will include:

- a) Development Planning Remark or Town Planning Remark.
- b) Survey of the entire plot with regards to the area and topography of the plot existing plot boundary and existing structures in coordination with Society's Architect & PMC
- c) Intimation of Disapproval (IOD): from NMMC.
- d) Property Tax Assessment NOC: from NMMC. (Assessment Department).
- e) Hydraulic Engineer No Objection Certificate: from NMMC. (Hydraulic Department).
- f) Storm Water Drainage No Objection Certificate: from NMMC
- g) Sewerage No Objection Certificate: from NMMC.
- h) Traffic Department No Objection Certificate: from NMMC. Tree No Objection Certificate: from NMMC. (Tree Authority).
- i) Civil Aviation No Objection Certificate if required: Airport Authority of India.
- j) MTNL No Objection Certificate: MTNL.
- k) Chief Fire Officer's No Objection Certificate: Fire Department Office.
- l) Commencement Certificate: from NMMC.
- m) Lift Inspection No Objection Certificate: Inspector of Lifts, PWD.
- n) Occupation Certificate (OC): from NMMC.
- o) Water Connection Certificate: from NMMC.
- p) Drainage Completion Certificate: from NMMC. (Water Department).
- q) Building Completion Certificate (BCC): from NMMC.
- r) Building Demolition Work: Contractor appointed for demolition work.
- s) Soil Testing Report: The Concerned Laboratory.

Note: Please ensure to collect all the listed certificates from the Developer/Developer as the same must be with the custody of the Housing Society once the redevelopment of the property is completed and the Occupancy certificate is issued by NMMC to rehouse the members.

13. Action to be taken by society after receipt of the Redevelopment Project Report

1. On receipt of Redevelopment Project Report as above, Secretary of the society will convene a joint meeting to approve the Project Report with majority vote by taking into consideration suggestions received from Committee Members and Architect/Project Management Consultant. It should be mentioned in the notice that a copy of the Project Report is available in the society's office for members to see and the notice should be served on all the members that they should submit their suggestions 15 days prior to the next Committee Meeting and acknowledgement of such notice should be kept on record of the Society.
2. Even days prior to joint meeting, suggestions received from the members will be forwarded by Society's Secretary to the Architect/Project Management Consultant for his Information. There will be a detailed discussion in the Joint meeting on the suggestions/recommendations from members and opinion thereon of the Architect/Project Management Consultant and project report will be approved with necessary changes. Thereafter draft of tender form will be prepared and date of next joint meeting will be fixed for discussion on draft tender form and finalizing the same.
3. While preparing draft tender form, in order to get competitive quotations from renowned experts and experienced developers, either carpet area or rent, shifting charges, refundable deposit, brokerage and corpus fund fixed (not to be changed) and by finalizing other technical matters, the Society will invite tenders from Society office (Cost of Tender Document will be decided by the society in coordination with appointed PMC. Society shall invite the tenders from known Developers who has good working experience in Navi Mumbai Municipal Region.

14. Action to be taken after publishing list of tenders received

1. On the Last day for receiving tenders, Secretary of the Society will prepare a list of developers received and display the same on the notice board of the society.
2. After 15 days of the last day for receiving quotations, Secretary of the society will convene special meeting of Managing Committee of the society. Authorized representatives of bidders and members of the society desirous of remaining present can remain present for the meeting as observers.
3. Tenders so received will be opened in the presence of all and the Architect/Project Management consultant will scrutinize all tenders and prepare a comparative chart and after checking merit, reputation, experience and comparative rate, etc. and select minimum 3 bids and if the bids received are less than 5, all the bids for putting up before Special General Meeting and concerned bidders will be informed about it immediately.

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15. Development Agreement to be executed

1. Subject to the terms and conditions approved by General Body Meeting of the Society, an agreement should be entered into with the Developer within 45 days under guidance from the Architect/ Project Management Consultant. Along with the points suggested by the Architect/ Project Management Consultant appointed by the society, following points will also be included in the agreement.
2. The completion period of Redevelopment shall be of not more than 3 years and in special cases not more than 4 years in case of any exigencies.
3. The Developer will give Bank Guarantee of Rs. 10 crores.
4. The Developer will try to give alternate accommodation to the members in the same area till the Redevelopment Project is complete or the developer shall pay rent, deposit, brokerage and shifting charges and the members of the society shall arrange for alternate temporary rented accommodation.
5. The Agreement will be registered under Registration Act 1908.
6. All the new members shall be admitted in the society after completion of the Redevelopment Project and after approval of General Body Meeting of the society only
7. The Agreement shall have specific mention of the agreed RERA Carpet Area.
8. The Development rights given to the Developer will be non-transferable.
9. The flat owners will vacate their flats only after receipt of all the legal permissions for the Redevelopment work and signing of the Permanent Alternate Accommodation Agreement with the developer.
10. Those in possession of their flats will not lose their rights.
11. Agreement between contractor, Architect and society shall have a condition that disputes, if any, on the Redevelopment work shall be settled u/s Rule No. 91 of the Rules.
12. After receipt of the Occupation Certificate for the Redeveloped building the distribution of the flats should be preferably made in accordance to the prevailing arrangement of present floors. In case when the Allotment of flats is required to be made by lots, only after completion of the building the Developer should make available the lottery system after completion of the Redevelopment Project. The developer should arrange for draw of lots for the distribution of flats in presence of Registrar's representative and video shooting of the complete process will be made.
13. No member of the Committee or Officer bearer shall be a Developer or his relative.
14. The Building Plans which are approved by the Municipal Corporation / Competent Authority shall be again placed before the General Body Meeting for information. A member wishing to have a copy of the approved Documents can get the same on his written application. The committee is bound to issue the information on charging a reasonable fee.

16. List of Amenities

All amenities to be provided shall be of highest quality in workman like manner. All fittings and fixtures to be used as specified in list of approved materials & suppliers and of ISI standard. The further details of amenities, electrical points, plumbing layout, door & window schedules, flooring, tiling, dado's, kitchen platforms etc. shall be worked out at the time of finalizing the working drawings based on following list of amenities & list of approved materials & suppliers. These specifications are not intended to cover the minute details.

General

- The total construction shall be as per relevant Indian Standard Code of Practice.
- All Construction Specifications irrespective of being individually specified or not will be as per latest BIS / NBC Codes.
- Material's Specifications will be of ISI or Quality Standards exceeding to ISI of Top / First Quality and as per National Building Code.
- All materials for incorporation into the works shall be of the best quality, of their respective kinds as specified herein and will adhere to the requirements of the latest edition of the relevant Bureau of Indian Standards or any other equivalent quality standards prevailing in the Trade and / or approved by the Society in consultation with the PMC.
- The specifications are indicative as minimum specification.

1. RCC

- The RCC structure shall be framed structure designed for earthquake resistance as per relevant IS code and National Building code.
- All the RCC works viz. pile foundation open footings, plinth beams, floor, beams, columns, staircase, lift well, overhead tanks, underground tanks, lift machine rooms, lofts etc. shall be as per IS 456 and shall be designed for earthquake forces and wind forces as per IS 1893 and as per Drawings of Structural Engineer.
- The type of construction / foundation will be as per the geological soil investigation report.
- The minimum grade of concrete for all RCC work shall be as per standards approved by Structural Engineer.
- The minimum grade of reinforcing steel shall be Tor TMT 500 of ISI make.
- Columns on RAFT foundation as per Structural Engineers requirement.
- Horizontal tie beams at the stilt level to enhance structural stability of the building.
- Appropriate and approved construction chemicals & concrete additives shall be used to protect the reinforcement from corrosion.

2. Structure

- All external walls shall be minimum 150 mm thick Autoclaved Aerated Concrete (AAC) Blocks with thin bed mortar.

- All internal walls shall be minimum 100 mm thick Autoclaved Aerated Concrete (AAC) Blocks with thin bed mortar.
- Internal Walls between Flats shall be of minimum 150 mm thick AAC Blocks
- All internal surfaces shall be finished with coat cement mortar plaster finished with gypsum surface plaster (POP finish) of approved brands.

3. Planning

- The buildings will be planned for High-rise residential tower with ultra-modern elevation.
- Society office with toilet, intercom, telephone facilities, cupboards for storage, etc. complete; of maximum permissible area as per NMMC norms.
- Adequate refuge areas as per NMMC fire norms.
- Adequate care shall be taken for proper ventilation and natural lighting in all flats.
- The external elevation shall be well treated to give elegant modern aesthetic looks.
- The plot shall be filled to make formation level at-least 1'-6" above existing road level & the stilt level shall be at-least 0'-6" above the formation level.

4. Common Areas

- Designer entrance lobby including full height dado as per approved design.
- Minimum 2 automatic high-speed lift per wing of capacity 7 / 8 persons or more as specified and additional 1 stretcher lift and /or as per the architectural design.
- Designer lift lobby to be provided at all floors including Granite or Marble jambs around lift openings at all floors
- Common Passage shall be naturally ventilated.
- Cabling for telephone/Internet line shall be provided to all units.
- Uniform Decorative name plate should be provided to all flats at all floors
- Decorative railing for staircase as per approved design & specification.
- Decorative compound wall with Decorative Pillars / Gates.
- Paver blocks / Chequered Tiles for open ground.
- Pre-mix Concrete Flooring with Joints for open ground.
- Common toilets for servants / watchman / drivers etc.
- Sufficient Lighting in common areas.
- Landscaping/Garden/Play Area at Ground or/and Podium Level.
- Provision for sufficient parking spaces precisely 1 parking for each Residential unit.
- Fitness Centre/Society Office.

5. Security System

- CCTV area surveillance systems for the complete surrounding area, lobby, passages, staircases, lifts & all common areas connected to the Security Desk on Ground Floor & Society Office.

- All entry and exit shall have a watchman / security cabin with surveillance equipment.
- All entrances halls of all wings shall have security desk with intercom & video connection to all units in the whole complex.
- All such security desk shall be inter-connected to all flats and central security room.
- All surveillance equipment shall have capacity for 60 days storage of recordings
- Intercom & Video Door Phone (from security desk to flat & internal flat to flat).

6. Common Services

- Adequate capacity underground & overhead RCC water storage tank with bore well & dual water supply system as per NMMC norms.
- Underground RCC water storage tank shall be provided with submersible pumps, auto level controller, starters etc. complete of approved make.
- Firefighting System along with fire alarm, automatic sprinkler / hooter system etc. complete as per CFO's requirement and as specified.
- Firefighting requirements for RCC underground & overhead water storage tank as per statutory requirements and as per CFO's NOC.
- Electric Sub-station of adequate capacity as per statutory requirements
- Adequate generator power backup for all essential common services.
- Solar water heating system and solar common lighting shall be provided.
- Rain water harvesting as per statutory requirements.
- Vermi-culture pits as per statutory requirements.
- Well-designed garbage disposal system should be provided
- Anti-termite treatment to complete project.
- Water proofing to all wet surfaces including toilets, baths, WCs, kitchen nahani's, terraces, chajja's, canopies etc. To be executed from approved agencies with guarantee to be given by the water proofing company in favor of Society on stamp paper.
- Brick bat coba waterproofing shall be done for all the floors of toilets, baths, WCs, terrace and also for laying of underground drainage plumbing lines. China mosaic flooring on terrace.
- Bore wells including the necessary electrical connection along with submersible pumps and automatic water controller shall be provided as per NMMC rules and regulations for flushing purposes.
- Meter room of adequate size at ground floor.
- Adequate Infrastructure like layout roads, storm water drains, street lighting etc. and as approved by statutory bodies.
- Adequate lighting to whole complex including stilts, podiums, pavements & all other common areas.
- Compound wall.

7. Electrification

- Adequate provision for electric points for lights, fans, exhaust fans, bell points, plug points, power points etc. as per design & specification.
- Adequate electrical points in kitchen for lighting, fan, exhaust fan, kitchen chimney, refrigerator, microwave, water filters, mixtures, power points, plug points etc. as per design & specification.
- Adequate electrical points in toilets / bath / WC for lighting, exhaust fans, water heating purposes etc. as per design & specification.
- All switches, switchboards, fittings & fixtures shall be modular of approved make.
- All light & fan fittings & fixtures in all rooms.
- TV / Cable Point in living room.
- Wiring for telephone in all habitable rooms & kitchen.
- MCB and ELCB shall be provided in each flat with independent circuits & circuit breakers.
- Electrical supply with proper earthing to all units.
- The total electrification shall be concealed and the fittings & fixtures provided shall be of 1st quality of approved make.
- Excellent quality concealed electrification with fire retardant ISI mark cables, wires, pipes etc. of approved make.
- Adequate provisions for all electrical works in compound, gate, common service areas, stilts, staircase, common passages, terrace, lift machine room, etc. where ever required.
- All electrical works to comply with regulation of electricity board and electric supply & company.
- Location, type of fitting & fixtures should be approved by the Society before starting electrical work.
- All electrical fixtures shall be of at least 3-star rating.

8. Plumbing

- Excellent quality of concealed plumbing, pipes & fittings.
- Total concealed plumbing shall be of 1st quality U-PVC of ISI mark.
- UPVC pipes and ring pipe fittings of approved make for external looping and down-takes.
- External drainage pipes should be UPVC pipes of approved make.
- The Under Ground Drainage pipes shall be of the best quality S. W.G. pipes and fitting with box connecting.
- All vertical drainage and rain water pipe lines and water supply work up and including drainage connection to the Sewage line and water connection to the NMMC water main including Water master and be carried out through Licensed as per NMMC requirement.
- All vertical down take water supply & drainage pipes shall have spacers.
- All junctions of vertical down take water supply pipes shall use Strainers.

- Necessary points for water purifier, washing machine shall be provided at suitable location.
- Drainage chambers as per NMMC specifications.

9. Kitchen

- MGL gas connection in Kitchen for cooking & heating.
- Kitchen platform shall be either L shaped, U shaped or on opposite walls as per approved design & specification.
- Main kitchen platform with conventional 675mm wide, 19mm thick granite platform on top & below with kadappa infrastructure including granite fascia Patti with molding as per approved design & specification.
- Stainless steel sink with a minimum size of 600 x 450 x 250 mm.
- The kitchen sink shall be provided with mixture sprout as per approved design & specification.
- Exhaust fans in Kitchen of approved make.

10. Bath, WC & Toilets

- All Sanitary fittings & fixtures provided shall be of 1st quality
- Wall mounted toilets with dual flush system with soft closer seat cover.
- Branded electric storage type water heaters in all bath / toilets of approved make.
- Exhaust fans in bath / WC / toilet of approved make.
- Loft in all bathroom & toilets.
- Hot & cold-water diverter including sprout & shower etc. complete in bathroom & toilets of approved make as per approved design & specification.
- UPVC pipes and ring pipe fittings for external looping and down-takes as specified.
- Proper arrangement for washing machine like power, water supply & drainage.

11. Paints

- Velvet Touch / Lustre paint for all internal surfaces.
- Acrylic emulsion weather coat paint to all external surfaces.
- Internal walls should be finished with Gypsum and finally wall putty. Paint shall be applied later.

12. Tiling & Flooring's

- 800 x 800 mm joint-free, homogeneous full body vitrified or matt finish flooring in living room as per approved design & specification. 100 mm high vitrified tile skirting flush to wall matching with design of flooring.
- 600 x 600 mm joint-free, homogeneous full body vitrified flooring in all bedrooms, passages as per approved design & specification. 100 mm high vitrified tile skirting flush to wall matching with design of flooring.

- 300 x 300 mm anti-skid tiles in flooring & 300 x 300 mm full height ceramic tile dado in kitchen of approved make as per approved design & specification. 100 mm high vitrified tile skirting flush to wall matching with design of flooring.
- 300 x 300 mm Anti-skid tiles in flooring & 300 x 300 mm full height ceramic tile dado in bath / toilets / WC. All tiles will be designer colour tiles of approved make as per approved design & specification.

13. Door

- 35 MM (1 1/2") thick Decorative entrance door with laminate finish / molded panel flush door having designer skin with all hardware fittings including safety chain, lock, aldrop, tower bolt, telescopic peep hole, handle, door stopper etc. complete of approved make as per approved design & specification.
- 35 MM (1 1/2") thick with laminate finish / molded panel flush door to all rooms with all hardware fittings including mortis lock, tower bolt, handle, door stopper etc. complete of approved make as per approved design & specification.
- Fiber Reinforced Glass doors to Bath / WC /Toilet with all hardware fittings & fixtures including locks etc. complete of approved make as per approved design & specification.
- Main door frames shall be of Teak Wood with double patties including molding.
- All other Door frames shall be of Granite with double patties including molding.
- All hardware fittings shall be of brass CP / brass powder coated of premium quality as per approved design & specification.

14. Windows

- Anodized / Powder Coated Aluminium Sliding Windows of 1 ¼" or 1 ½" series with plain / frosted / tinted glass with all hardware fittings & fixtures including locks etc. complete of approved make as per design & specification approved.
- Granite / marble sills with double patties including molding to all windows.
- Window frames shall be of Granite / marble with double patties including molding.
- All hardware fittings shall be of brass CP / brass powder coated of premium quality as per approved design & specification.

The society / owners shall have right to exchange over, approved amenities / add new with advanced / latest amenities which might be observed at any future interior exhibition, subject maximum up to 5 % cost addition, on and over existing cost of amenities planned by developer.

17. Compensation to Existing Member

In the context of redevelopment, compensation refers to the benefit provided to an affected member or tenant which is required to relocate, be re-allotted, or undergo a change of use as part of the redevelopment scheme to ensure that such person is not placed in a valuation disadvantage position due to relocation, change of use, or modification of their existing premises.

In the event that any existing tenant shall be entitled to fair and reasonable compensation. Such changes may arise due to statutory bye-laws, planning regulations, design constraints, authority requirements, structural limitations, or any unforeseen site or regulatory conditions for the approval process.

Compensation may be structured in the form of monetary consideration based on prevailing market valuation, additional area benefits, alternative premises, or an appropriate combination thereof, depending upon feasibility and mutual agreement by appointed developer.

The PMC shall assist the concerned members in facilitating a transparent evaluation process and in securing fair compensation from the developer. Final terms shall remain subject to mutual consent and necessary approvals as per Society resolutions and applicable laws. However, the determination of whether such compensation is necessary for the purpose of redevelopment shall be decided by the Society members. The General Body shall have the right to decide, based on project requirements and overall feasibility, whether such compensation is required or not.

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18. Benefits to developer

The Society's property is located at Sector 17, Vashi, the heart of Navi Mumbai, offering excellent connectivity, strong infrastructure, and sustained market demand. This reduces the developer's upfront capital investment and improves overall project feasibility. Further, the Society's rehabilitation requirement is relatively limited compared to the total development potential, allowing efficient planning and optimization of the sale component.

1. Higher Profit Margins

Prime locations command premium property prices. Even though land acquisition cost is avoided, the sale value of additional flats is significantly higher—leading to strong profitability.

2. No Land Acquisition

The biggest challenge in new developments for buying land is eliminated. In redevelopment, the initial land acquisition cost is not applicable, as the land is already leased by the Society.

3. High Demand & Faster Sales

Prime locations already have:

- Established infrastructure
- Good connectivity
- Social amenities (schools, hospitals, etc.)

The site enjoys high visibility and strategic positioning within a well-established residential and commercial hub.

4. Better Brand Positioning

Completing projects in premium areas enhances the developer's reputation and credibility in the market, helping in securing future high-value projects. The project has the potential to become a landmark development in the locality for decades, offering sustained brand value and commercial recognition to the developer.

5. Lower Marketing Costs

Since the location itself is a strong selling point, developers spend less on marketing compared to projects in developing areas. The prime location and strong commercial activity in the area, sale of units is expected to be market-driven and not burdensome.

6. Long-Term Value Appreciation

Projects in prime locations appreciate faster, benefiting both the developer (during sales) and enhancing goodwill among buyers.

19. Conclusion

Based on the technical, financial, and statutory assessment, the proposed redevelopment project is found to be feasible and beneficial for all stakeholders involved. The redevelopment will result in optimum utilization of land, enhancement of living standards, and overall improvement of infrastructure and aesthetics.

The project aligns with the applicable unified development control and promotion regulations (UDCPR) and offers a sustainable and economically viable solution for replacing the existing old and dilapidated structures. The expected benefits include additional area for existing occupants, modern amenities, improved safety, and long-term value appreciation. Financial analysis indicates that the project is commercially viable for the developer while ensuring adequate compensation and facilities for the existing members and reallocation of commercial unit to offices.

In conclusion, the redevelopment of the said property is strongly recommended, subject to compliance with statutory requirements, transparent agreements, and adherence to approved timelines and quality standards.

Solutions / suggestions for society.

- Society shall / must adopt eco - friendly measures for reduction of cost on new maintenance charges.
- Water harvesting system will reduce water & electricity bills, Vermiculture system on site will boost greenery at minimum cost
- Non - conventional energy production will use biodegradable waste and generate on site cooking gas & electricity, reduces gas & electricity bills, solar water heater system will reduce electricity bills, Water recycling plant will reduce water bills,
- Proper / timely maintenance system of building will reduce cost of major repairs.
- Water pump control system will reduce water & electricity bills, and damages to structure.
- Society may adopt some money generating measures to get some monetary benefits to compensate new maintenance charges.

Expected offer from developer:

Increment Area	Residential- 40% Commercial (Front) - 40% (As is where is basis) / 300% (Expected Compensation to upper floor) Commercial (Side and Back) - 40% (As is where is basis) / 150% (Expected Compensation to upper floor)
Rent	Residential- Rs 90 /sq.ft on existing carpet area Commercial (Front) - Rs 260 /sq.ft on existing carpet area Commercial (Side and Back) - Rs 260 /sq.ft on existing carpet area
Corpus	Rs 2,00,000 /member
Shifting Charges	Rs 20,000 /member to and fro
Flat Brokerage	2-month Rent
Flat Deposit (Refundable)	Rs 50,000 /member

Parking	1 parking/member
Floor to Height Ceiling	10ft
Amenity	Society office, Drivers room, Servant toilet, Telecom room.

Note:

- The Project Management Consultant (PMC) has prepared an offer as per the project requirements and ensure the successful execution and completion of the project. Proposal has been framed after assessing all relevant technical, financial, and regulatory factors to ensure completion of redevelopment work.
- The detailed project configuration and calculations can be finalized only after obtaining necessary approvals and clearances from CIDCO and other statutory authorities.
- Priority for conversion of commercial units to office use in discussions with the appointed developer, with fair compensation based on market value. The offer for relocated shops shall be finalized based on the valuation provided by the appointed valuer and/or the developer's offer. The concerned members will be facilitated with a transparent evaluation process and in securing fair compensation from the appointed developer.
- The Society expects the Developer to provide an increase of 60% over the existing carpet area for all residential and commercial (as is where is basis) members as part of the redevelopment in the developer tender document.
- Due to compliance with applicable bye-laws, commercial units may be affected during redevelopment in terms of the width of the shop; however, the Appointed Developer shall determine and provide appropriate adjustments.
- Members shall be allotted flats on the same floor or a higher floor than their current premises, with a similar view, to the extent of design viability. In cases where multiple members on the same floor are entitled to similar view, the allotment shall be determined through a transparent lottery system and jodi flats/shop with similar view would be counted as one unit for lottery system, conducted with proper video recording and in the presence of the Registrar or an authorized representative. In case of Jodi flat/shop, developer shall provide in jodi flat/shop in new building to the extent of design viability.
- The compensation to be provided to an affected member or tenant which is required to relocate, be re-allotted, or undergo a change of use as part of the redevelopment scheme shall be governed by and determined in accordance with the provisions of Chapter 17 - Compensation to Existing Member.
- Considering all positive and negative factors, the project is economically viable and offers enhanced area benefits to the members. However, the project has the potential to enable a developer to establish a benchmark at the said location, the relatively low profit margin over turnover increases the financial risk substantially. Additionally, the project is unlikely to attract adequate developer interest, rendering it a high-risk proposition for the society to proceed under the present planning framework and project completion.
- The proposed offer in the feasibility is realistic and true with respect to the project.

- The offer proposed by PMC is in accordance with the minimum setback based on project feasibility, and the society along with PMC, will evaluate all technical and financial aspects and negotiate with the developer to secure the maximum possible benefit for the society.
- The saleable area rates have been determined based on the prevailing market rates.
- Carpet area (FSI) under standard old planning used to be 8 - 12% less than built up area. Carpet area including balcony under old planning used to be 15% more than built up area. Closed garages + private terraces + private garden is not part of F.S.I., hence compensation for same shall be decided mutually on case-to-case basis among parties concerned.
- Any expectation or circulation of additional or revised offers without proper reason may create uncertainty, affecting the quality control. It is therefore important that all further reviews and decisions are made in reference to the offer placed by the PMC.

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